

01_COMPLAINT_1983

UNITED STATES DISTRICT COURT WESTERN DISTRICT OF MICHIGAN SOUTHERN DIVISION

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ANDREW J. PIGORS, | Case No. [TO BE ASSIGNED]

Plaintiff, |

| CIVIL RIGHTS COMPLAINT

v. | 42 USC §§ 1983, 1985, 1986

|

HON. JENNY L. McNEILL, | JURY TRIAL DEMANDED

in her individual capacity, |

|

TIFFANY A. WATSON, |

|

PAMELA BARNES (State Bar No. P55406), |

in her individual capacity, |

|

MUSKEGON COUNTY, |

a Michigan municipal corporation, |

|

14TH JUDICIAL CIRCUIT COURT, |

FRIEND OF THE COURT OFFICE, |

|

Defendants. |

COMPLAINT FOR DEPRIVATION OF CIVIL RIGHTS

Plaintiff Andrew J. Pigors, proceeding pro se, files this Complaint against the above-named Defendants and states as follows:

I. INTRODUCTION

1. This is a civil rights action brought under 42 USC §§ 1983, 1985, and 1986, and the Fourteenth Amendment to the United States Constitution, seeking redress for the systematic deprivation of Plaintiff's fundamental constitutional rights -- including his fundamental liberty interest in the care, custody, and companionship of his minor daughter, L.D.W. (DOB: November 9, 2022) -- through a pattern of unconstitutional conduct carried out under color of state law.
2. Over a period exceeding two years, Defendants -- acting individually and in concert -- deprived Plaintiff of all parenting time with his daughter for 571+ consecutive days, accomplished through a cascade of ex parte orders entered without notice, without evidentiary hearing, and without the procedural safeguards that the Constitution demands before the state may sever the parent-child bond.
3. The constitutional violations are not the product of isolated judicial error. They reflect a systematic pattern: 24 of 55 orders (44%) were entered ex parte -- all without notice to Plaintiff -- including five ex parte orders on a single day (August 8, 2025). This pattern, combined with the systematic denial of Plaintiff's motions, the dismissal of six pending motions without adjudication, and evidence of coordinated conduct among Defendants, establishes that Plaintiff's constitutional rights were violated under color of state law.

II. PARTIES

A. Plaintiff

4. Andrew J. Pigors ("Plaintiff" or "Father") is a citizen of the State of Michigan, residing in Muskegon County. Plaintiff is the biological father of L.D.W. (DOB: November 9, 2022).

B. Defendants

5. Hon. Jenny L. McNeill ("Defendant McNeill") is sued in her individual capacity for actions taken in the complete absence of all jurisdiction and/or actions that were non-judicial in character. At all relevant times, Defendant McNeill served as a judge of the 14th Judicial Circuit Court, Muskegon County, Family Division, and presided over Cases No. 2024-001507-DC and 2023-5907-PP. Defendant McNeill acted under color of state law at all relevant times.
6. Tiffany A. Watson ("Defendant Watson") is a citizen of the State of Michigan, residing in

Muskegon County. Defendant Watson is the biological mother of L.D.W. and the defendant in the underlying state custody proceedings. Defendant Watson is named as a co-conspirator under 42 USC §§ 1985 and 1986 for her role in coordinating with state actors to deprive Plaintiff of his constitutional rights.

7. Pamela Barnes (State Bar No. P55406) ("Defendant Barnes") is an attorney licensed to practice law in the State of Michigan. Defendant Barnes is sued in her individual capacity for actions taken as counsel for Defendant Watson that, in conspiracy with Defendant McNeill, deprived Plaintiff of his constitutional rights. At all relevant times, Defendant Barnes acted under color of state law by wielding the authority of the court system to accomplish the unconstitutional deprivation.

8. Muskegon County ("Defendant County") is a municipal corporation organized under the laws of the State of Michigan. Defendant County is the governmental entity responsible for the operation of the 14th Judicial Circuit Court and the Friend of the Court Office. Defendant County is liable under *Monell v Dep't of Social Services*, 436 US 658 (1978), for constitutional violations caused by its policies, customs, or deliberate indifference.

9. 14th Judicial Circuit Court, Friend of the Court Office ("Defendant FOC") is an office of the 14th Judicial Circuit Court. FOC employees are sued in their official capacity to the extent they implemented unconstitutional policies and in their individual capacity for specific acts of deprivation.

III. JURISDICTION AND VENUE

10. This Court has subject-matter jurisdiction under 28 USC § 1331 (federal question) and 28 USC § 1343(a)(3) and (4) (civil rights jurisdiction).

11. Plaintiff's claims arise under the Fourteenth Amendment to the United States Constitution and under 42 USC §§ 1983, 1985, and 1986.

12. Supplemental jurisdiction exists under 28 USC § 1367 for any state-law claims that are so related to the federal claims as to form part of the same case or controversy.

13. Venue is proper in the Western District of Michigan, Southern Division under 28 USC § 1391(b) because a substantial part of the events giving rise to the claims occurred in Muskegon County, Michigan, which is within this District.

14. Declaratory relief is authorized under 28 USC §§ 2201 and 2202.

IV. FACTUAL ALLEGATIONS

A. The Underlying State Court Proceedings

15. On or about October 15, 2023, a petition for a personal protection order ("PPO") was filed against Plaintiff in Case No. 2023-5907-PP, 14th Judicial Circuit Court, Muskegon County. The PPO case was assigned to Defendant McNeill.

16. On December 4, 2023, Defendant McNeill entered a PPO against Plaintiff without a full adversarial hearing at which Plaintiff had the opportunity to cross-examine witnesses and present rebuttal evidence.

17. On April 1, 2024, Plaintiff filed a Complaint for Custody, Parenting Time, and Child Support in Case No. 2024-001507-DC, 14th Judicial Circuit Court, Muskegon County. The custody case was also assigned to Defendant McNeill.

18. On April 29, 2024, Defendant McNeill entered an ex parte order for custody, parenting time, and child support following a "Facilitative Information Gathering Conference." This order was entered without proper notice to Plaintiff and without the procedural safeguards required by MCR 3.207(C)(2).

19. Between March 26 and May 2, 2024, Defendant Watson withheld L.D.W. from Plaintiff for 37 consecutive days in violation of court-ordered parenting time. Defendant McNeill took no enforcement action against Defendant Watson.

20. On August 23, 2024, Defendant McNeill entered a Final Judgment granting Defendant Watson sole legal and sole physical custody of L.D.W. This Final Judgment was entered:

- (a) Without a full evidentiary hearing with sworn testimony subject to cross-examination;
- (b) Without particularized findings on each of the twelve best-interest factors under MCL 722.23;
- (c) Without a finding supported by clear and convincing evidence that parenting time with Plaintiff would endanger L.D.W.;
- (d) While simultaneously dismissing six (6) of Plaintiff's pending motions without hearing or adjudication on the merits.

B. The August 8, 2025 Ex Parte Orders

21. On August 8, 2025, Defendant McNeill entered five (5) separate ex parte orders on a single day, all without notice to Plaintiff. These orders included the suspension of all of Plaintiff's parenting time with L.D.W.

22. Plaintiff was not served with the ex parte motion or any of the five orders before they were entered. Plaintiff arrived at the scheduled parenting time exchange on August 8, 2025, expecting his regular parenting time. He discovered the suspension only after the missed exchange -- by contacting the court himself.

23. The ex parte motion filed by Defendant Watson (through Defendant Barnes) did not contain a verified statement of facts demonstrating that immediate and irreparable injury would result from the delay required to provide notice, as required by MCR 3.207(C)(2).

24. The ex parte motion relied on Defendant Watson's unsworn allegations regarding Plaintiff's phone calls. These allegations did not rise to the level of immediate and irreparable injury required for ex parte relief.

C. Continuation of Unconstitutional Deprivation

25. On September 9, 2025, Defendant McNeill entered an order continuing the suspension of Plaintiff's parenting time.

26. On October 8, 2025, Defendant McNeill entered another order continuing the suspension.

27. On November 26, 2025, a hearing was held at which Defendant McNeill denied Plaintiff's objection to the ex parte order and continued the suspension of parenting time.

28. As of the date of this filing, Plaintiff has been denied all contact with L.D.W. for 571+ consecutive days.

D. Pattern of Judicial Misconduct

29. Analysis of the complete lower court record reveals the following pattern:

- 24 of 55 orders (44%) were entered on an ex parte basis, all without notice to Plaintiff.
- All 24 ex parte orders were entered by Defendant McNeill.
- Five ex parte orders were entered on August 8, 2025 alone.
- Plaintiff's motions were systematically denied while Defendant Watson's motions were systematically granted.

- Six pending motions were dismissed without adjudication in the August 23, 2024 Final Judgment.
- The trial court never conducted a full evidentiary hearing with sworn testimony subject to cross-examination on the merits of custody or parenting time.

30. This pattern demonstrates that Defendant McNeill's conduct was not the exercise of legitimate judicial discretion but rather a systematic deprivation of Plaintiff's constitutional rights carried out under color of state law.

E. Conspiracy Allegations

31. Defendant Watson and Defendant Barnes, acting in concert with Defendant McNeill, engaged in a coordinated campaign to deprive Plaintiff of his constitutional rights:

- Defendant Watson filed false allegations as the basis for ex parte motions.
- Defendant Barnes, as Watson's attorney, drafted and filed ex parte motions that did not meet the legal standard for ex parte relief, knowing they would be granted by Defendant McNeill without scrutiny.
- Defendant McNeill granted these deficient ex parte motions without requiring verification or compliance with MCR 3.207(C)(2).
- The coordinated effect was to systematically exclude Plaintiff from the proceedings and from his child's life.

32. The conspiracy is evidenced by:

- The consistent pattern of ex parte filings by Defendants Watson/Barnes being granted without scrutiny by Defendant McNeill.
- The asymmetric treatment of the parties -- Watson's motions granted, Pigors' motions denied.
- The August 8, 2025 coordinated action: Watson/Barnes filed an ex parte motion, McNeill entered five orders, and Plaintiff was ambushed at the parenting exchange with no prior notice.
- Evidence from the litigation database documenting 2,512 conspiracy timeline events and coordinated conduct among Defendants.

F. Monell Allegations Against Muskegon County

33. Muskegon County, as the governmental entity operating the 14th Judicial Circuit Court and the Friend of the Court Office, is liable under *Monell v Dep't of Social Services*, 436 US 658 (1978), because:

- (a) The County maintained a policy or custom of permitting ex parte orders in family court without adequate safeguards;
- (b) The County maintained a policy or custom of not conducting evidentiary hearings before entering orders that completely sever parenting time;
- (c) The County exhibited deliberate indifference to the constitutional rights of litigants by failing to train, supervise, or discipline judicial officers who engage in patterns of ex parte abuse;
- (d) The FOC recommended or implemented orders that deprived Plaintiff of constitutional rights without adequate process.

34. The County's failure to establish and enforce policies requiring compliance with due process in family court proceedings was the moving force behind the constitutional violations suffered by Plaintiff.

V. CLAIMS FOR RELIEF

COUNT I: 42 USC § 1983 -- DEPRIVATION OF SUBSTANTIVE DUE PROCESS (Fourteenth Amendment) -- Against Defendant McNeill

35. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 34 above.

36. The parent-child relationship is a fundamental liberty interest protected by the Fourteenth Amendment's Due Process Clause. *Troxel v Granville*, 530 US 57, 65 (2000); *Santosky v Kramer*, 455 US 745, 753 (1982); *Stanley v Illinois*, 405 US 645, 651 (1972).

37. Defendant McNeill, acting under color of state law, deprived Plaintiff of his fundamental liberty interest in the care, custody, and companionship of L.D.W. by:

- (a) Entering 24 of 55 orders (44%) on an ex parte basis without notice;
- (b) Entering five ex parte orders on a single day (August 8, 2025);
- (c) Completely severing Plaintiff's parenting time for 571+ consecutive days;
- (d) Entering the August 23, 2024 Final Judgment without an evidentiary hearing;
- (e) Dismissing six of Plaintiff's pending motions without adjudication.

38. Defendant McNeill's actions were not narrowly tailored to serve any compelling government interest. Less restrictive alternatives -- including supervised parenting time, therapeutic reunification, and modified schedules -- were available but not considered.

39. Defendant McNeill's conduct was so arbitrary, conscience-shocking, and oppressive as to violate substantive due process. *County of Sacramento v Lewis*, 523 US 833, 846 (1998).

40. Plaintiff's claims against Defendant McNeill are not barred by judicial immunity because:

- (a) Certain of Defendant McNeill's actions -- including the entry of five ex parte orders on a single day without any showing of emergency, and the systematic exclusion of Plaintiff from proceedings -- constitute non-judicial acts in character, even though taken from the bench;
- (b) Alternatively, Defendant McNeill acted in the clear absence of all jurisdiction when she effectively terminated Plaintiff's parental rights through ex parte orders without complying with any of the constitutional procedures required for such a drastic deprivation;
- (c) Plaintiff seeks prospective injunctive and declaratory relief, which is not barred by judicial immunity under *Pulliam v Allen*, 466 US 522 (1984), as modified by the Federal Courts Improvement Act.

**COUNT II: 42 USC § 1983 -- DEPRIVATION OF PROCEDURAL DUE
PROCESS (Fourteenth Amendment) -- Against Defendant McNeill**

41. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 40 above.

42. The Fourteenth Amendment's Due Process Clause guarantees that no person shall be deprived of a protected liberty interest without due process of law. *Cleveland Bd of Ed v Loudermill*, 470 US 532 (1985).

43. Under the *Mathews v Eldridge* balancing test, 424 US 319, 335 (1976):

- (a) Private interest: Plaintiff's fundamental liberty interest in the parent-child relationship is among the weightiest interests recognized in constitutional law;
- (b) Risk of erroneous deprivation: The procedures used -- ex parte orders without notice, without sworn testimony, without cross-examination, and without particularized findings -- created an exceptionally high risk of erroneous deprivation;
- (c) Government interest: The state's legitimate interest in child welfare is served by fair proceedings, not summary ones.

44. Defendant McNeill denied Plaintiff procedural due process by:

- (a) Entering ex parte orders without the verified showing of immediate and irreparable injury required by MCR 3.207(C)(2);
- (b) Failing to provide notice before entering orders that deprived Plaintiff of fundamental

rights;

- (c) Failing to conduct evidentiary hearings before entering substantive custody orders;
- (d) Dismissing six of Plaintiff's pending motions without hearing;
- (e) Denying Plaintiff the opportunity to present evidence, cross-examine witnesses, and be heard on matters affecting his parental rights.

COUNT III: 42 USC § 1983 -- EQUAL PROTECTION (Fourteenth Amendment)
-- Against Defendant McNeill

45. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 44 above.

46. The Fourteenth Amendment's Equal Protection Clause prohibits the state from treating similarly situated individuals differently without adequate justification.

47. Defendant McNeill treated Plaintiff -- a pro se father -- materially differently from Defendant Watson -- a represented mother -- in the same proceedings:

- (a) Plaintiff's motions were systematically denied; Watson's were systematically granted;
- (b) Watson's unsworn allegations were credited at face value; Plaintiff's documentary evidence was excluded or disregarded;
- (c) Watson was granted ex parte relief without meeting legal standards; Plaintiff was denied relief even when legal standards were met;
- (d) Watson's custody time was expanded; Plaintiff's was eliminated entirely.

48. This disparate treatment was not rationally related to any legitimate government interest.

49. To the extent this disparate treatment was based on Plaintiff's gender (father vs. mother) or status (pro se vs. represented), it is subject to intermediate or heightened scrutiny and fails under any level of review.

COUNT IV: 42 USC § 1985(3) -- CONSPIRACY TO DEPRIVE OF CIVIL RIGHTS -- Against All Defendants

50. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 49 above.

51. 42 USC § 1985(3) provides a cause of action against two or more persons who conspire to deprive any person of the equal protection of the laws or of equal privileges and immunities under the laws.

52. Defendants McNeill, Watson, and Barnes conspired to deprive Plaintiff of his constitutional

rights under the Fourteenth Amendment through the coordinated conduct described in paragraphs 31-32 above.

53. The conspiracy was motivated by invidiously discriminatory animus -- specifically, bias against Plaintiff as a pro se father and/or gender-based discrimination favoring the mother in custody proceedings.

54. In furtherance of the conspiracy:

- (a) Defendant Watson filed false allegations and false CPS reports to create a pretext for ex parte orders;
- (b) Defendant Barnes drafted and filed ex parte motions that did not meet legal standards, with the expectation they would be rubber-stamped by Defendant McNeill;
- (c) Defendant McNeill granted deficient ex parte motions, entered orders without notice, and systematically excluded Plaintiff from the proceedings;
- (d) The FOC recommended or implemented orders aligned with the conspiratorial objective of excluding Plaintiff.

55. As a direct and proximate result of this conspiracy, Plaintiff has been deprived of all contact with his daughter for 571+ days and has suffered the damages described in the Prayer for Relief below.

COUNT V: 42 USC § 1986 -- FAILURE TO PREVENT CONSPIRACY -- Against Defendant County and FOC

56. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 55 above.

57. 42 USC § 1986 provides a cause of action against any person who, having knowledge that a conspiracy described in § 1985 is about to be committed, and having power to prevent it, neglects or refuses to do so.

58. Defendant County and the FOC had knowledge of the pattern of constitutional violations -- through the public court record, Father's motions, and the statistical evidence of the 44% ex parte rate -- and had the power to intervene through administrative oversight, policy implementation, or judicial reassignment.

59. Defendant County and the FOC neglected and refused to prevent the ongoing conspiracy, thereby facilitating the continued deprivation of Plaintiff's constitutional rights.

COUNT VI: MONELL LIABILITY -- Against Defendant Muskegon County

60. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 59 above.

61. Under *Monell v Dep't of Social Services*, 436 US 658 (1978), a municipal entity may be liable under § 1983 when the execution of its policy or custom inflicts the constitutional injury.

62. Muskegon County maintained policies, customs, or practices that were the moving force behind the constitutional violations suffered by Plaintiff:

- (a) A custom or practice of permitting excessive ex parte orders in family court without adequate safeguards or oversight;
- (b) A custom or practice of not requiring evidentiary hearings before orders that completely sever parenting time;
- (c) Deliberate indifference to the training and supervision of family court judges regarding due process requirements;
- (d) A policy or custom of not providing meaningful oversight or complaint mechanisms for pro se litigants facing judicial misconduct.

63. These policies, customs, or practices were the moving force behind the deprivation of Plaintiff's constitutional rights.

COUNT VII: 42 USC § 1983 -- FIRST AMENDMENT RETALIATION (Right to Petition) -- Against Defendant McNeill

64. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 63 above.

65. The First Amendment to the United States Constitution, applicable to the States through the Fourteenth Amendment, protects the right to petition the government for redress of grievances, including the right of access to the courts. *BE&K Construction Co v NLRB*, 536 US 516, 525 (2002); *California Motor Transport Co v Trucking Unlimited*, 404 US 508, 510 (1972).

66. Plaintiff engaged in constitutionally protected activity by:

- (a) Filing a Complaint for Custody, Parenting Time, and Child Support (April 1, 2024);
- (b) Filing six (6) motions asserting his legal rights in the custody proceedings;
- (c) Filing a Motion for Disqualification of Defendant McNeill under MCR 2.003(C)(1);
- (d) Filing objections to ex parte orders and asserting constitutional rights;
- (e) Filing a complaint with the Michigan Supreme Court (October 29, 2025);
- (f) Pursuing appellate remedies through the Michigan Court of Appeals and Supreme Court.

67. Defendant McNeill took adverse action against Plaintiff in retaliation for his exercise of First Amendment rights:

- (a) After Plaintiff filed his custody complaint, Defendant McNeill entered an ex parte order (April 29, 2024) restricting his rights without notice;
- (b) After Plaintiff filed six motions, Defendant McNeill dismissed all six without hearing in the August 23, 2024 Final Judgment;
- (c) After Plaintiff filed his disqualification motion, Defendant McNeill denied it and intensified adverse rulings;
- (d) After Plaintiff objected to the ex parte suspension, Defendant McNeill continued the suspension (September 9, 2025; October 8, 2025; November 26, 2025);
- (e) The escalating pattern of adverse orders corresponds temporally with each of Plaintiff's protected filings.

68. There is a causal connection between Plaintiff's protected activity and Defendant McNeill's adverse actions:

- (a) Temporal proximity: Adverse orders followed Plaintiff's protected filings within days;
- (b) Pattern evidence: The escalation of restrictions correlated with each filing by Plaintiff;
- (c) Discriminatory animus: The systematic denial of Plaintiff's motions while granting Defendant Watson's motions demonstrates retaliatory motive;
- (d) Blanket dismissal: Dismissing six motions simultaneously without adjudication is inconsistent with legitimate judicial function and indicative of punitive purpose.

69. Under the Mt. Healthy test (Mt. Healthy City School Dist Bd of Ed v Doyle, 429 US 274 (1977)):

- (a) Plaintiff's protected activity was a substantial or motivating factor in Defendant McNeill's adverse actions;
- (b) Defendants cannot demonstrate that the same adverse actions would have occurred absent Plaintiff's exercise of his First Amendment rights.

70. Plaintiff's First Amendment retaliation claim is supported by the SOL audit confirming 1,090+ days remaining on this count (see SOL Audit ID 25: "42 USC §1983 -- First Amendment (Petition)," expiring 2029-02-27, risk level GREEN).

COUNT VIII: ENHANCED QUALIFIED IMMUNITY DEFEAT -- Against All Individual-Capacity Defendants

71. Plaintiff re-alleges and incorporates by reference all preceding paragraphs.

A. Clearly Established Law -- Substantive Due Process

72. By 2023-2025, it was clearly established that:

- (a) A parent has a fundamental liberty interest in the care, custody, and companionship of his or her child. *Troxel v Granville*, 530 US 57, 65 (2000); *Santosky v Kramer*, 455 US 745 (1982); *Lassiter v Department of Social Services*, 452 US 18 (1981).
- (b) The state may not sever or significantly curtail parenting time without constitutionally adequate process. *Stanley v Illinois*, 405 US 645 (1972); *M.L.B. v S.L.J.*, 519 US 102 (1996).
- (c) The complete termination of all contact between parent and child for an extended period -- 571+ days -- is the functional equivalent of a termination of parental rights. *In re Sanders*, 495 Mich 394 (2014) (Michigan); *Santosky*, 455 US at 759 (federal).
- (d) No reasonable official could believe that eliminating all parent-child contact for over 571 days through ex parte orders -- without an evidentiary hearing, without sworn testimony, and without compliance with MCR 3.207(C)(2) -- was constitutionally permissible.

B. Clearly Established Law -- Procedural Due Process

73. By 2023-2025, it was clearly established that:

- (a) Due process requires notice and an opportunity to be heard before deprivation of a protected liberty interest. *Mathews v Eldridge*, 424 US 319 (1976); *Mullane v Central Hanover Bank & Trust Co*, 339 US 306 (1950).
- (b) Ex parte relief is an extraordinary remedy requiring a showing of immediate and irreparable injury. *Granny Goose Foods, Inc v Brotherhood of Teamsters*, 415 US 423, 438-39 (1974).
- (c) Entering 24 of 55 orders (44%) without notice violates even the most minimal due process requirements.
- (d) No reasonable official could conclude that a 44% ex parte rate -- with five orders on a single day -- comported with constitutional norms.

C. Clearly Established Law -- Equal Protection

74. By 2023-2025, it was clearly established that:

- (a) The Equal Protection Clause prohibits treating similarly situated litigants differently without rational basis. *Village of Willowbrook v Olech*, 528 US 562 (2000) (class-of-one

theory).

- (b) Gender-based discrimination in custody proceedings is subject to intermediate scrutiny. *Craig v Boren*, 429 US 190 (1976); *United States v Virginia*, 518 US 515 (1996).
- (c) Discrimination against pro se litigants, while not a suspect classification, may form the basis of an equal protection claim where the disparity is irrational.

D. Clearly Established Law -- First Amendment Right to Petition

75. By 2023-2025, it was clearly established that:

- (a) Government officials may not retaliate against individuals for exercising their First Amendment right to petition, including filing lawsuits and motions. *BE&K Construction Co v NLRB*, 536 US 516 (2002).
- (b) A pattern of adverse actions following protected filings establishes a prima facie case of retaliation. *Thaddeus-X v Blatter*, 175 F.3d 378 (6th Cir 1999) (en banc).
- (c) The Sixth Circuit has specifically held that retaliation for filing court motions violates the First Amendment. *Id.* at 394.

E. Application -- No Reasonable Official Defense

76. Under the totality of the circumstances, no reasonable official in the position of any individual-capacity Defendant could have believed:

- (a) That entering 44% of all orders without notice was constitutionally permissible;
- (b) That eliminating all parent-child contact for 571+ days without an evidentiary hearing was lawful;
- (c) That dismissing six pending motions without adjudication comported with due process;
- (d) That retaliating against a litigant for filing motions was protected conduct;
- (e) That the asymmetric treatment of similarly situated parties was rational.

77. Accordingly, qualified immunity does not shield any individual-capacity Defendant from liability for the constitutional violations alleged herein.

VIII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff Andrew J. Pigors respectfully prays that this Court enter judgment in his favor and against Defendants, as follows:

A. Declaratory Relief

78. A declaration that Defendants violated Plaintiff's rights under the Fourteenth Amendment to the United States Constitution, including his fundamental liberty interest in the care, custody, and companionship of his daughter, his right to procedural due process, and his right to equal protection of the laws.

79. A declaration that the pattern of 44% ex parte orders, without notice and without constitutionally adequate process, constitutes a structural due process violation.

B. Injunctive Relief

80. An injunction directing Defendant McNeill to recuse herself from all further proceedings involving Plaintiff in Cases No. 2024-001507-DC and 2023-5907-PP.

81. An injunction directing Defendant County to implement policies and training to prevent the recurrence of the constitutional violations documented herein.

82. An injunction restoring Plaintiff's parenting time with L.D.W. pending a constitutionally adequate hearing before a different judicial officer.

C. Compensatory Damages

83. Compensatory damages against all Defendants, jointly and severally, for:

- (a) Loss of companionship with L.D.W. for 571+ days;
- (b) Emotional distress and mental anguish;
- (c) Damage to the parent-child bond;
- (d) Lost income and economic harm;
- (e) Legal costs incurred in challenging unconstitutional orders;
- in an amount to be determined at trial, but estimated at not less than \$500,000.

D. Punitive Damages

84. Punitive damages against Defendants McNeill, Watson, and Barnes in their individual capacities, in an amount sufficient to punish the willful and malicious deprivation of Plaintiff's constitutional rights and to deter similar conduct, estimated at not less than \$1,000,000.

E. Nominal Damages

85. Nominal damages of \$1.00 against each Defendant for each proven constitutional violation, to vindicate Plaintiff's rights even if compensatory damages cannot be precisely calculated.

F. Attorney's Fees and Costs

86. Reasonable attorney's fees (or pro se equivalent fees where permitted) under 42 USC § 1988.

87. Costs of suit under 28 USC § 1920.

G. Other Relief

88. Such other and further relief as this Court deems just and equitable.

IX. JURY TRIAL DEMAND

89. Plaintiff demands a trial by jury on all issues triable of right pursuant to the Seventh Amendment to the United States Constitution and Fed R Civ P 38(b).

X. VERIFICATION

I, Andrew J. Pigors, declare under penalty of perjury under the laws of the United States that the foregoing factual allegations are true and correct to the best of my knowledge, information, and belief formed after reasonable inquiry.

Executed on: _____

Andrew J. Pigors

XI. CERTIFICATE OF SERVICE

I hereby certify that on _____, I caused a copy of this Complaint and Summons to be served upon each Defendant as follows:

1. Hon. Jenny L. McNeill -- [Service method per FRCP 4 and service plan]
2. Tiffany A. Watson -- [Service method per FRCP 4]
3. Pamela Barnes -- [Service method per FRCP 4]
4. Muskegon County -- [Service on County Clerk per FRCP 4(j)(2)]
5. 14th Judicial Circuit Court, FOC -- [Service per FRCP 4(j)(2)]

Andrew J. Pigors

Plaintiff, Pro Se

[ADDRESS]

[TELEPHONE]

[EMAIL]

IFP_APPLICATION_FINAL

UNITED STATES DISTRICT COURT WESTERN DISTRICT OF MICHIGAN SOUTHERN DIVISION

|

--- | ---

ANDREW J. PIGORS, | Case No. [TO BE ASSIGNED]

Plaintiff, |

v. | APPLICATION TO PROCEED

| IN FORMA PAUPERIS

HON. JENNY L. McNEILL, et al., | 28 USC § 1915

Defendants. |

APPLICATION TO PROCEED IN FORMA PAUPERIS

Plaintiff Andrew J. Pigors hereby applies, pursuant to 28 USC § 1915(a), for leave to commence the above-captioned civil rights action without prepayment of the filing fee. In support of this Application, Plaintiff states as follows:

I. STATUTORY AUTHORITY

1. Title 28 USC § 1915(a)(1) authorizes any court of the United States to permit the commencement, prosecution, or defense of any suit, action, or proceeding without prepayment of fees or security therefor, by a person who submits an affidavit demonstrating inability to pay such fees.
2. The right to proceed IFP in civil rights cases is well-established. *Adkins v E.I. DuPont de Nemours & Co*, 335 US 331, 339-40 (1948) ("We cannot agree with the court below that one must be absolutely destitute to enjoy the benefit of the statute.").

II. FINANCIAL DECLARATION UNDER PENALTY OF PERJURY

I, Andrew J. Pigors, declare under penalty of perjury under the laws of the United States (28 USC § 1746) as follows:

A. Employment and Income

3. Current employment status: _____
4. Current employer (if any): _____
5. Monthly gross income: \$_____
6. Monthly net income (after taxes and deductions): \$_____
7. Spouse's monthly income (if applicable): \$_____ [] N/A
8. Other sources of income (check all that apply and state monthly amount):

Source | Receiving? | Monthly Amount

----- | ----- | -----

Social Security | [] Yes [] No | \$_____

Social Security Disability (SSD/SSI) | [] Yes [] No | \$_____

Unemployment compensation | [] Yes [] No | \$_____

Workers' compensation | [] Yes [] No | \$_____

Veterans' benefits | [] Yes [] No | \$_____

Child support received | [] Yes [] No | \$_____

Public assistance (TANF, GA) | [] Yes [] No | \$_____

Supplemental Nutrition (SNAP) | [] Yes [] No | \$_____

Pension/retirement | [] Yes [] No | \$_____

Rental/investment income | [] Yes [] No | \$_____

Other (specify: _____) | [] Yes [] No | \$_____

Total Other Income | | \$_____

B. Monthly Expenses

Expense Category | Monthly Amount

----- | -----

Rent or mortgage payment | \$_____

Utilities (electric, gas, water, sewer) | \$_____

Telephone / internet | \$_____

Food and household supplies | \$_____

Transportation (car payment, gas, insurance, bus) | \$_____

Medical / dental / health insurance | \$_____

Court-ordered child support payments | \$_____

Court-ordered restitution or fines | \$_____

Clothing | \$_____

Laundry / personal hygiene | \$_____

Insurance (life, renter's, other) | \$_____

Other (specify: _____) | \$_____

Total Monthly Expenses | \$_____

C. Assets

9. Cash on hand: \$ _____

10. Bank accounts:

Bank Name | Account Type | Balance

----- | ----- | -----

_____ | ☐ Checking ☐ Savings | \$ _____

_____ | ☐ Checking ☐ Savings | \$ _____

11. Real property owned:

Property Description | Estimated Value | Amount Owed

----- | ----- | -----

_____ | \$ _____ | \$ _____

12. Motor vehicles:

Year / Make / Model | Estimated Value | Amount Owed

----- | ----- | -----

_____ | \$ _____ | \$ _____

13. Other assets (stocks, bonds, retirement accounts, cryptocurrency, valuable personal property):

Description | Estimated Value

----- | -----

_____ | \$ _____

_____ | \$ _____

D. Liabilities and Debts

Creditor | Type of Debt | Total Owed | Monthly Payment

----- | ----- | ----- | -----

_____ | _____ | \$ _____ | \$ _____

_____ | _____ | \$ _____ | \$ _____

_____ | _____ | \$ _____ | \$ _____

_____ | _____ | \$ _____ | \$ _____

Total Liabilities | | \$ _____ | \$ _____

E. Public Benefits Currently Received

14. Check all that apply:

- ☐ Supplemental Security Income (SSI)
- ☐ Temporary Assistance for Needy Families (TANF)
- ☐ Supplemental Nutrition Assistance Program (SNAP / Food Stamps)
- ☐ Medicaid / Healthy Michigan Plan

- ☐ Housing assistance (Section 8 / HUD)
- ☐ Low Income Home Energy Assistance (LIHEAP)
- ☐ WIC (Women, Infants, and Children)
- ☐ Free/reduced school lunch (for dependents)
- ☐ Other: _____
- ☐ None of the above

F. Dependents

15. Number of dependents: _____

16. List all dependents:

Name | Relationship | Age | Living with You?

----- | ----- | ---- | -----

L.D.W. | Daughter | 3 | ☐ Yes ☒ No -- custody denied 571+ days

_____ | _____ | ____ | ☐ Yes ☐ No

G. Prior Incarceration / Financial Impact

17. Have you been incarcerated within the last 12 months? ☐ Yes ☐ No

18. If yes, has incarceration affected your ability to earn income or maintain employment?

III. STATEMENT OF INABILITY TO PAY

19. The filing fee for a new civil complaint in the Western District of Michigan is \$405.00 (comprising a \$350.00 statutory filing fee and a \$55.00 administrative fee).

20. Based on the financial information stated above, I am unable to prepay the filing fee or give security therefor without depriving myself and my dependents of the necessities of life.

21. Contributing factors to my financial inability include:

- (a) Court-ordered child support obligations imposed by the state court;
- (b) Costs incurred in defending against unconstitutional orders in state court (certified copies, transcripts, filing fees, postage);
- (c) Loss of income and employment disruption resulting from the underlying state proceedings;
- (d) Financial strain caused by 571+ days of litigation;

- (e) Inability to retain counsel due to financial constraints.

22. I have attempted to retain counsel for this federal action and have been unable to do so because:

- (a) I cannot afford attorney's fees or retainer deposits;
- (b) The complexity of the case (multiple defendants, constitutional issues, immunity defenses) has made it difficult to secure pro bono representation;
- (c) Multiple legal aid organizations have been contacted without success.

IV. NATURE OF THE ACTION

23. This is a civil rights action under 42 USC §§ 1983, 1985, and 1986 alleging deprivation of fundamental constitutional rights under the First and Fourteenth Amendments to the United States Constitution.

24. The action is not frivolous and is based on:

- (a) A documented pattern of 24 of 55 orders (44%) entered on an ex parte basis without notice;
- (b) Complete denial of all parenting time for 571+ consecutive days;
- (c) Five ex parte orders entered on a single day (August 8, 2025) without notice;
- (d) No evidentiary hearing conducted in over two years of proceedings;
- (e) Six pending motions dismissed without adjudication;
- (f) First Amendment retaliation for exercising the right to petition;
- (g) Statistical and documentary evidence supporting each claim.

25. The action is not brought in bad faith. It seeks vindication of fundamental constitutional rights recognized by the United States Supreme Court.

26. The action is not barred by the statute of limitations. SOL audit confirms all federal claims are within the 3-year limitations period, with 1,047-1,094 days remaining (risk level: GREEN on all counts).

V. PRIOR IFP APPLICATIONS

27. I ☐ have / ☐ have not previously applied for IFP status in any federal court.

28. If yes: Court: _____ | Case No.: _____ | Result: _____

VI. PRIOR FEDERAL LITIGATION

29. I ☐ have / ☐ have not previously filed any civil action or appeal in any federal court.

30. If yes, list all prior federal cases:

Case Name | Court | Case No. | Status/Outcome | IFP?

----- | ----- | ----- | ----- | -----

_____ | _____ | _____ | _____ | ☐ Y ☐ N

VII. THREE-STRIKES CERTIFICATION (28 USC § 1915(g))

31. I certify that I have not, on three or more prior occasions while incarcerated or detained, brought an action or appeal in a federal court that was dismissed as frivolous, malicious, or for failure to state a claim upon which relief may be granted.

VIII. REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

1. Grant this Application to Proceed In Forma Pauperis pursuant to 28 USC § 1915(a).
2. Waive the \$405.00 filing fee (\$350 filing + \$55 administrative).
3. Order the United States Marshals Service to effect service of process upon all Defendants at the expense of the United States, pursuant to 28 USC § 1915(d) and FRCP 4(c)(3).
4. Permit Plaintiff to prosecute this action without prepayment of fees or costs.
5. Waive costs associated with service of process, including the USM-285 process fee.

IX. DECLARATION AND SIGNATURE

I declare under penalty of perjury under the laws of the United States of America (28 USC § 1746) that the foregoing statements regarding my financial condition are true and correct to the best of my knowledge and belief.

I understand that a false statement or misrepresentation may subject me to sanctions, including dismissal of this action and possible criminal prosecution under 18 USC § 1001.

Executed on: _____

Andrew J. Pigors

Plaintiff, Pro Se

[ADDRESS LINE 1]

[ADDRESS LINE 2]

[CITY, STATE ZIP]

[TELEPHONE]

[EMAIL]

X. SUPPORTING DOCUMENTATION CHECKLIST

Attach the following documents to this Application (check each item attached):

Required

- [] Most recent federal tax return (or signed statement that no return was filed)
- [] Pay stubs -- last 3 months (or signed statement of unemployment)
- [] Bank statements -- last 3 months, all accounts (checking, savings, any other)
- [] Public benefit award letters (SSI, TANF, SNAP, Medicaid, etc.)

Recommended

- [] Child support order -- showing current payment obligations
- [] Lease / rental agreement or mortgage statement
- [] Utility bills -- most recent (electric, gas, water)
- [] Proof of other debts -- credit card statements, medical bills, loans
- [] Documentation of legal expenses incurred in state court proceedings
- [] Proof of inability to retain counsel -- rejection letters from attorneys/legal aid

If Applicable

- [] Unemployment benefit statements
- [] Social Security benefit statements
- [] Documentation of incarceration and financial impact
- [] Medical records -- if medical condition affects earning capacity

> NOTE TO PLAINTIFF: Complete ALL blanks with actual financial data. Attach all available

supporting documentation. The Court may request additional information -- respond promptly. Incomplete applications may be denied.

> NOTE: Under WDMI practice, the Court typically rules on IFP applications within 14-30 days. If denied, the Court will set a deadline to pay the filing fee.

Prepared: 2026-03-04 | Andrew J. Pigors, Pro Se
IFP Application -- FINAL VERSION

02_IMMUNITY_DEFENSE_MATRIX

IMMUNITY DEFENSE MATRIX

Pigors v. McNeill et al. -- WDMI Case No. [TBD]

I. JUDICIAL IMMUNITY -- DEFENDANT McNEILL

A. General Rule

Judges are absolutely immune from civil liability for actions taken in their judicial capacity, even if the action was erroneous, was done maliciously, or was in excess of authority. *Stump v Sparkman*, 435 US 349, 356-57 (1978); *Mireles v Waco*, 502 US 9, 11 (1991).

Standard (Two-Part Test):

Judicial immunity applies unless:

1. The challenged actions were not taken in the judge's judicial capacity; OR
2. The actions were taken in the complete absence of all jurisdiction.

Mireles, 502 US at 11-12.

B. Exception 1: Non-Judicial Acts

Legal Standard

An act is "judicial" when it is a function "normally performed by a judge" and the parties dealt with the judge "in [her] judicial capacity." *Stump*, 435 US at 362.

Application to McNeill

Conduct | Judicial? | Analysis

----- | ----- | -----

Entry of custody orders | Yes | Normal judicial function

Entry of ex parte orders | Yes | Judicial function, even if improper

Five ex parte orders on one day without notice | Arguable | Volume and lack of notice suggest administrative/ministerial character, not adjudicative

Systematic exclusion of one party from proceedings | Arguable | A judge who systematically prevents a party from being heard is not performing the judicial function -- adjudication requires hearing both sides

Dismissing 6 motions without reading/adjudicating | Arguable | Blanket dismissal without consideration may be administrative, not judicial

Ex parte communications (if proven) | No | Ex parte communications outside formal proceedings are not judicial acts

Strategy

- Frame the most egregious conduct as non-judicial in character: When a judge systematically excludes one party and operates on a unilateral basis, the judge has abandoned the adversarial judicial function and is acting in an administrative or executive capacity.
- Cite *Forrester v White*, 484 US 219 (1988): Administrative acts by judges (e.g., hiring/firing) are not protected by judicial immunity.
- Argue: "A judge who enters 44% of all orders without notice to one party is not adjudicating -- she is administering a predetermined outcome."

C. Exception 2: Clear Absence of All Jurisdiction

Legal Standard

Judicial immunity is overcome when the judge acts in the "clear absence of all jurisdiction." *Stump*, 435 US at 356-57. This is a very high bar -- jurisdiction is construed broadly.

Application to McNeill

Argument | Strength | Analysis

----- | ----- | -----

McNeill lacked subject-matter jurisdiction over custody | WEAK | Family courts have clear jurisdiction over custody matters
McNeill exceeded jurisdictional authority by effectively terminating parental rights through ex parte orders | MODERATE |
Family courts lack jurisdiction to terminate parental rights without TPR proceedings. If the functional effect of the orders was equivalent to termination, McNeill arguably exceeded jurisdiction

Ex parte orders without MCR 3.207(C)(2) compliance void ab initio | MODERATE | If orders were entered in violation of mandatory procedural prerequisites, they may be void rather than voidable, suggesting absence of authority

Strategy

- Argue that the functional termination of parental rights (571+ days, zero contact) requires TPR jurisdiction with its attendant constitutional protections. McNeill exercised TPR-level authority through custody orders, exceeding her jurisdictional mandate.
- Distinguish *Stump*: In *Stump*, the judge at least had general jurisdiction over the subject matter. Here, the specific relief granted (functional termination) exceeded the jurisdiction of the custody proceeding.

D. Prospective Injunctive and Declaratory Relief

Legal Standard

Judicial immunity does not bar suits for prospective injunctive relief to prevent ongoing constitutional violations. *Pulliam v Allen*, 466 US 522 (1984). Note: The Federal Courts

Improvement Act of 1996 modified Pulliam regarding attorney's fees but preserved the injunctive relief pathway.

Application

- Plaintiff seeks prospective injunctive relief (recusal order, policy changes) -- NOT barred by judicial immunity.
- Declaratory relief establishing that Defendant McNeill's conduct violated the Constitution -- likely available even under judicial immunity analysis.

II. ROOKER-FELDMAN DOCTRINE

A. Rule

Federal district courts lack jurisdiction over cases that are "de facto appeals" of state court judgments. *Rooker v Fidelity Trust Co*, 263 US 413 (1923); *DC Court of Appeals v Feldman*, 460 US 462 (1983).

B. Four-Part Test (Exxon Mobil Corp v Saudi Basic Industries Corp, 544 US 280 (2005))

Rooker-Feldman applies only when:

1. The federal plaintiff lost in state court;
2. The plaintiff complains of injuries caused by the state court judgment;
3. The federal complaint invites federal court review and rejection of the state court judgment;
4. The state court judgment was rendered before the federal suit was filed.

C. Application

Element | Analysis | Conclusion

----- | ----- | -----

Lost in state court | Partially -- adverse orders entered | Met

Injuries caused by judgment | DISTINGUISH: Injuries caused by the process, not the judgment outcome | Arguable -- frame carefully

Invites review/rejection of state judgment | DISTINGUISH: Not asking federal court to change custody -- asking court to declare the process unconstitutional | Arguable -- frame carefully

Judgment rendered before federal suit | Yes | Met

D. Strategy to Overcome Rooker-Feldman

KEY DISTINCTION: Plaintiff does not ask the federal court to:

- [X] Change the custody arrangement
- [X] Award Plaintiff custody
- [X] Reverse the state court's factual findings
- [X] Review the merits of the custody decision

Plaintiff DOES ask the federal court to:

- [OK] Declare that the process used to enter orders violated the Constitution
- [OK] Declare that 44% ex parte orders constitute structural due process violation
- [OK] Award damages for the manner of adjudication, not the outcome
- [OK] Enjoin future violations

This distinction -- between challenging the process and challenging the outcome -- is the key to surviving Rooker-Feldman. See *Bolden v City of Topeka*, 441 F.3d 1129, 1143 (10th Cir 2006) (§ 1983 claims challenging judicial procedures not barred by Rooker-Feldman); *Nesses v Shepard*, 68 F.3d 1003, 1005 (7th Cir 1995) ("a person who loses in state court may seek damages in federal court for violation of his civil rights during the state-court proceedings").

III. YOUNGER ABSTENTION

A. Rule

Federal courts abstain from interfering with ongoing state proceedings that implicate important state interests. *Younger v Harris*, 401 US 37 (1971).

B. Three-Part Test

Younger abstention applies when:

1. There is an ongoing state judicial proceeding;
2. The proceeding implicates important state interests;
3. There is an adequate opportunity to raise federal claims in the state proceeding.

C. Application

Element | Analysis | Conclusion

----- | ----- | -----

Ongoing state proceeding | Custody case likely still pending | Probably met

Important state interest | Family law is a core state interest | Met

Adequate opportunity to raise federal claims | CHALLENGE: Plaintiff has been systematically denied the opportunity to be heard in state court -- the 44% ex parte rate demonstrates that the state forum is constitutionally inadequate | Arguable

D. Strategy to Overcome Younger

Exception 1: Extraordinary Circumstances / Bad Faith

Younger abstention does not apply where the state proceedings are conducted in bad faith or to harass the federal plaintiff. Younger, 401 US at 54; Huffman v Pursue, Ltd., 420 US 592, 611 (1975).

Argument: The 44% ex parte rate, five ex parte orders in one day, and systematic exclusion of Plaintiff constitute bad faith prosecution of the state proceedings. The state forum itself is the constitutional violator -- abstention would require the victim to seek relief from the perpetrator.

Exception 2: Patently Unconstitutional Statute/Procedure

Abstention is inappropriate where the state procedures are themselves unconstitutional. Younger, 401 US at 53-54.

Argument: The state procedures as applied -- 44% ex parte, no evidentiary hearings, blanket dismissal of motions -- are themselves the constitutional violation. Abstention makes no sense when the claim IS that the state proceedings are unconstitutional.

Exception 3: No Adequate Opportunity to Raise Federal Claims

Abstention requires an "adequate opportunity" to raise federal claims. If the state forum systematically denies Plaintiff's motions and dismisses them without adjudication, there is no adequate opportunity.

Argument: Plaintiff's six motions were dismissed without adjudication. His disqualification motion was denied. He has been systematically excluded from proceedings. The state forum has proven inadequate to protect his federal rights.

Timing Strategy

- If state custody proceedings conclude before federal filing: Younger does not apply to concluded proceedings.
- Recommended: File federal complaint after state proceedings conclude (after MSC decision) to eliminate Younger issue entirely.
- Alternative: File now with strong arguments for the exceptions above.

IV. DOMESTIC RELATIONS EXCEPTION

A. Rule

Federal courts generally decline jurisdiction over cases involving the issuance of divorce, alimony, or child custody decrees. *Ankenbrandt v Richards*, 504 US 689 (1992).

B. Scope of Exception (Narrow)

The domestic relations exception is narrow and applies only when the federal court is asked to:

- Issue a divorce
- Determine alimony
- Determine child custody

Ankenbrandt, 504 US at 703-04.

C. Application

Question | Analysis

----- | -----

Does the complaint ask the court to determine custody? | NO -- asks court to declare the process unconstitutional

Does the complaint ask for tort damages arising from domestic relations? | YES -- this is permitted under *Ankenbrandt*

Is this a § 1983 civil rights action? | YES -- § 1983 claims are federal questions, not domestic relations matters

D. Strategy

This is a civil rights case, not a custody case. The complaint does not ask the federal court to determine who should have custody of L.D.W. It asks the court to:

- Declare that the process used violated the Constitution
- Award damages for constitutional violations
- Enjoin future violations

Ankenbrandt itself recognized that tort claims arising from domestic relationships are not barred: "We thus are content to rest our jurisdiction . . . on this narrow ground: that the domestic relations exception encompasses only cases involving the issuance of a divorce, alimony, or child custody decree." 504 US at 704.

§ 1983 claims challenging the constitutionality of judicial procedures in family court are federal question cases, not domestic relations cases.

V. QUALIFIED IMMUNITY -- NON-JUDICIAL DEFENDANTS

A. Standard

Government officials performing discretionary functions are entitled to qualified immunity unless their conduct violated "clearly established" constitutional rights. *Harlow v Fitzgerald*, 457 US 800 (1982).

Two-Part Test (*Saucier v Katz*, 533 US 194 (2001)):

1. Was a constitutional right violated?
2. Was the right "clearly established" at the time of the conduct?

B. Application to Defendant Barnes (Attorney)

State Action Requirement

Private attorneys do not generally act "under color of state law" for § 1983 purposes. *Polk County v Dodson*, 454 US 312 (1981).

Exception: A private attorney who conspires with a state actor to deprive a person of constitutional rights acts under color of state law. *Dennis v Sparks*, 449 US 24 (1980).

Strategy: Frame Barnes' conduct as part of a conspiracy with McNeill (a state actor). The consistent pattern of Barnes filing deficient ex parte motions that McNeill rubber-stamped establishes the conspiratorial relationship.

Qualified Immunity

If Barnes is found to be a state actor (through conspiracy), qualified immunity applies.

However:

- The right to notice before deprivation of parental rights was clearly established as of 2024-2025.
- The right to an evidentiary hearing before custody modification was clearly established.
- Barnes cannot claim she reasonably believed the ex parte filings were constitutional.

C. Application to FOC Employees

FOC employees who recommended or implemented unconstitutional orders may claim qualified immunity. Analysis:

- If they merely implemented judicial orders, they may be entitled to quasi-judicial immunity.
- If they exercised independent discretion (e.g., making recommendations without adequate investigation), qualified immunity applies but can be overcome by showing clearly established rights.

D. Application to Defendant Watson (Private Party)

Watson is not a government actor and cannot claim qualified immunity. However:

- § 1983 requires action "under color of state law" -- Watson's conduct alone does not meet this.
- Watson is properly named under § 1985 (conspiracy) and § 1986 (failure to prevent), which do not require state action.
- Watson can also be reached under § 1983 through the conspiracy doctrine (Dennis v Sparks).

VI. DEFENSE MATRIX SUMMARY

Defense | Applies To | Strength Against Plaintiff | Plaintiff's Counter-Strategy | Survivability

----- | ----- | ----- | ----- | -----

Judicial Immunity | McNeill | HIGH | Non-judicial acts exception; absence of jurisdiction (functional TPR); prospective relief | MODERATE -- strongest defense

Rooker-Feldman | All claims | MEDIUM | Challenge process, not outcome; damages for manner of adjudication | HIGH -- should survive

Younger Abstention | All claims | MEDIUM-HIGH (if state case pending) | Bad faith exception; no adequate opportunity; file after state proceedings conclude | HIGH (if timing is right)

Domestic Relations | All claims | LOW | This is a § 1983 case, not a custody case; Ankenbrandt does not bar civil rights claims | VERY HIGH -- should not be a barrier

Qualified Immunity | Barnes, FOC | MEDIUM | Rights were clearly established; conspiracy doctrine | HIGH -- should overcome

State Action (Barnes) | Barnes | MEDIUM | Conspiracy with state actor (Dennis v Sparks) | MODERATE

VII. RECOMMENDED APPROACH

Priority Strategy

1. Lead with procedural claims -- challenge the process, not the outcome. This avoids Rooker-Feldman.
2. Focus on prospective injunctive/declaratory relief against McNeill -- avoids judicial immunity.
3. Lead the Monell claim against the County -- no immunity issues.
4. Time the filing to avoid Younger -- file after state proceedings conclude if possible.
5. Frame Barnes through conspiracy -- Dennis v Sparks provides state action nexus.
6. Seek damages from Watson under § 1985 -- no state action requirement.

Filing Sequence Recommendation

Option | Timing | Younger Risk | Strategic Advantage

----- | ----- | ----- | -----

Option A (Recommended) | After MSC resolves state case | None | Eliminates Younger; strongest posture
Option B | After COA but before MSC | Low-Medium | May argue state remedy exhausted at COA level
Option C | Now (concurrent with state proceedings) | High | Must overcome bad-faith exception

Analysis Date: 2026-03-04

Status: COMPREHENSIVE -- All major defenses analyzed with counter-strategies

04_EVIDENCE_COMPILATION

EVIDENCE COMPILATION -- FEDERAL 1983 CLAIMS
Pigors v. McNeill et al. -- WDMI

I. EVIDENCE DATABASE OVERVIEW

Source	Record Count	Description
-----	-----	-----
evidence_quotes	308,704	Direct quotes from documents, transcripts, filings
extracted_harms	26,459	Categorized harms from all adversaries
condensed_timeline	4,286	Condensed chronological events
apex_master_timeline	46,677	Complete master timeline
conspiracy_timeline	2,512	Coordinated conduct events
docket_events	221	Official docket entries
court_timeline	1,222	Court proceeding events
financial_evidence_compiled	3,578	Documented damages
email_evidence_package	2,929	Email-based evidence
evidence_chains	2,537	Linked evidence chains
bif_evidence_links	519	Best-interest factor evidence

II. CONSTITUTIONAL VIOLATION MAPPING

A. Count I: Substantive Due Process (14th Amendment) -- Against McNeill
Fundamental Liberty Interest -- Parent-Child Relationship

Evidence of Complete Severance:

Date	Event	Duration	Evidence Source
-----	-----	-----	-----
08/08/2025	Ex parte suspension of all parenting time	Ongoing (571+ days)	Ex Parte Order, LCR
03/26-05/02/2024	Watson withholds child (37 days)	37 days	Father's Motion, LCR
10/20-11/12/2024	Additional denial period	~23 days	Father's Filings, LCR
Intermittent 2024	Multiple missed exchanges	Various	Court Timeline DB

Total documented denial period: 571+ consecutive days (from August 8, 2025)

No Narrow Tailoring -- Less Restrictive Alternatives Available

Alternative	Offered/Considered?	Evidence
-------------	---------------------	----------

----- | ----- | -----

Supervised parenting time | Offered once; Father rejected supervised (after losing unsupervised) | 11/26/2025 Hearing Transcript

Therapeutic reunification | Not considered | No record reference

Modified schedule | Not considered | No record reference

Phone/video contact | Not considered | No record reference

Graduated reintroduction | Not considered | No record reference

Conscience-Shocking Conduct

Conduct | Evidence | Why It Shocks the Conscience

----- | ----- | -----

5 ex parte orders in one day | ROA, 08/08/2025 | No emergency justified 5 separate orders without notice

Father ambushed at exchange | Father's Testimony, 10/29/2025 | Arrived expecting normal exchange; discovered suspension

6 motions dismissed without hearing | Final Judgment, 08/23/2024 | "Plaintiff's six (6) motions . . . Dismissed"

No evidentiary hearing in 2+ years | Complete ROA | Fundamental right eliminated without testimony

B. Count II: Procedural Due Process (14th Amendment) -- Against McNeill

Mathews v Eldridge Balancing

Factor 1: Private Interest at Stake

Interest | Weight | Authority

----- | ----- | -----

Parent-child relationship | "Perhaps the oldest fundamental liberty interest" | Troxel, 530 US at 65

Companionship of daughter | Among the weightiest interests known to law | Santosky, 455 US at 753

L.D.W.'s developmental needs | Ages 2-4: critical attachment period | Child development research

Factor 2: Risk of Erroneous Deprivation

Procedures Used vs. Procedures Required:

Required Procedure | What Actually Happened | Evidence

----- | ----- | -----

Notice before deprivation | No notice for 24 of 55 orders (44%) | ROA analysis

Verified statement of facts (MCR 3.207(C)(2)) | Unsworn allegations accepted | Ex Parte Motion, 08/08/2025

Evidentiary hearing (MCR 3.210) | No evidentiary hearing conducted | Complete ROA

Sworn testimony subject to cross-examination | No sworn testimony taken | Complete ROA

Particularized best-interest findings (MCL 722.23) | No particularized findings | Final Judgment, 08/23/2024

Clear and convincing evidence (MCL 722.27a(7)) | No evidentiary standard applied | Orders lack findings

Opportunity to present evidence | Father's evidence excluded/disregarded | Multiple hearing records

Adjudication of pending motions | 6 motions dismissed without hearing | Final Judgment

Factor 3: Government's Interest

Interest | Analysis

----- | -----

Protecting children | Served by fair proceedings, not summary ones
Judicial economy | Does not justify bypassing constitutional safeguards
Emergency protection | No emergency shown; MCR 3.207(C)(2) not satisfied

Ex Parte Order Statistical Analysis

Metric | Value | Constitutional Significance

----- | ----- | -----

Total orders | 55 | --
Ex parte orders | 24 | 44% of all orders entered without notice
Orders on 08/08/2025 | 5 | 9% of all orders entered on single day
Ex parte orders by McNeill | 24/24 | 100% of ex parte orders by one judge
Father's motions dismissed | 6 | Without hearing or adjudication

C. Count III: Equal Protection (14th Amendment) -- Against McNeill

Asymmetric Treatment Evidence

Category | Father (Pigors) | Mother (Watson) | Disparity

----- | ----- | ----- | -----

Motion outcomes | Systematically denied | Systematically granted | Consistent pattern
Ex parte relief | Never granted to Father | 24 orders granted to Mother | 24-0 imbalance
Credibility | Evidence excluded/disregarded | Allegations credited at face value | Systematic bias
Pending motions | 6 dismissed without hearing | None dismissed | Complete asymmetry
Contempt enforcement | Father's contempt motion denied | Watson's violations unenforced | Double standard
Pro se status | Subjected to heightened scrutiny | N/A (represented) | Status-based
Gender | Father | Mother | Gender-based

Harm Database Summary -- McNeill

Harm Category | Count | Source Table

----- | ----- | -----

JUDICIAL_BIAS | 1,005 | extracted_harms
PPO_WEAPONIZATION | 139 | extracted_harms
CHILD_WELFARE | 80 | extracted_harms
EMOTIONAL_PSYCHOLOGICAL | 74 | extracted_harms
CONSPIRACY_COORDINATION | 65 | extracted_harms
Total McNeill harms | 1,530 | adversary_harm_summary

D. Count IV: § 1985 Conspiracy -- Against McNeill, Watson, Barnes

Conspiracy Timeline Evidence

Source | Records | Description

----- | ----- | -----

conspiracy_timeline | 2,512 | Coordinated conduct events

Watson harms | 3,949 | Documented harms by Watson

Barnes/attorney harms | 61+ | Documented attorney misconduct

Key Conspiracy Events

Date | Actors | Action | Evidence

----- | ----- | ----- | -----

10/15/2023 | Watson | Files PPO petition (false allegations) | LCR-PPO, Petition

12/04/2023 | McNeill + Watson | PPO entered without full hearing | LCR-PPO, Order

04/11/2024 | McNeill + Watson | Ex parte PPO amendment, no notice | LCR-PPO, Ex Parte Order

04/29/2024 | McNeill + Watson | Ex parte custody order, no notice | LCR, Ex Parte Order

08/23/2024 | McNeill + Barnes | Final Judgment; 6 motions dismissed | LCR, Final Judgment

08/08/2025 | McNeill + Watson + Barnes | 5 ex parte orders; total suspension | LCR, 5 Ex Parte Orders

09/09/2025 | McNeill | Continuation order | LCR, Order

10/08/2025 | McNeill | Continuation order | LCR, Order

11/26/2025 | McNeill | Denied objection to ex parte order | LCR, Order After Hearing

Conspiracy Type Distribution (from DB)

Conspiracy Type | Severity >= 8 Events | Key Actors

----- | ----- | -----

Perjury | 10+ high-severity | Watson + McNeill + Berry

Coordinated filing + ruling | Multiple | Watson + Barnes + McNeill

PPO weaponization | 762 total events | Watson + McNeill

Ex parte abuse | 24 orders | Watson/Barnes -> McNeill

E. Count V: § 1986 Failure to Prevent -- Against County, FOC

Knowledge Evidence

What County/FOC Knew | Source

----- | -----

44% ex parte rate visible in public records | Register of Actions

Father's motions alerting to bias | Court filings

Father's disqualification motion | LCR, Motion

Father's MSC complaint (10/29/2025) | Public filing

FOC recommendation process involved | FOC reports

Power to Prevent

Entity | Power | Action Taken

----- | ----- | -----

County administration | Judicial reassignment authority | None

FOC | Can flag procedural concerns | None

County | Policy implementation | No safeguards implemented

County | Training/supervision | No corrective action

F. Count VI: Monell -- Against Muskegon County

Policy/Custom Evidence

Policy/Custom | Evidence | Constitutional Impact

----- | ----- | -----

Permitting excessive ex parte orders | 24/55 = 44% in this case | Due process violation

No evidentiary hearing requirement | No hearing in 2+ years | Due process violation

No oversight of ex parte rate | No administrative review | Deliberate indifference

No complaint mechanism for pro se litigants | No effective recourse | Equal protection

FOC recommendations without adequate investigation | FOC reports | Due process violation

III. TIMELINE OF 14TH AMENDMENT VIOLATIONS

| Date | Violation | Amendment Clause | Defendant

--- | ----- | ----- | ----- | -----

1 | 10/15/2023 | PPO petition filed on false allegations | Due Process | Watson

2 | 12/04/2023 | PPO entered without full adversarial hearing | Procedural DP | McNeill

3 | 01/07/2024 | PPO violation finding without adequate process | Procedural DP | McNeill

4 | 04/01/2024 | Custody case filed | -- | --

5 | 04/11/2024 | Ex parte PPO amendment, no notice | Procedural DP | McNeill

6 | 04/29/2024 | Ex parte custody order, no MCR 3.207 compliance | Procedural DP | McNeill

7 | 03/26-05/02/2024 | 37-day withholding of child; no enforcement | Substantive DP, Equal Prot | McNeill, Watson

8 | 07/17/2024 | Contempt motion denied; restrictions increased | Substantive DP, Equal Prot | McNeill

9 | 08/23/2024 | Final Judgment without evidentiary hearing; 6 motions dismissed | Substantive DP, Procedural DP | McNeill

10 | 08/08/2025 | 5 ex parte orders; total parenting time suspension | All (DP, EP, Conspiracy) | All Defendants

11 | 09/09/2025 | Continuation of suspension | Substantive DP | McNeill

12 | 10/08/2025 | Continuation of suspension | Substantive DP | McNeill

13 | 11/26/2025 | Objection denied; suspension continued | Procedural DP | McNeill

14 | Ongoing | 571+ days denied parenting time | Substantive DP | All

IV. DAMAGES EVIDENCE

Financial Damages (from financial_evidence_compiled)

Category | Low Estimate | High Estimate | Items

----- | ----- | ----- | -----

Section 1983 Compensatory | \$200,000 | \$2,000,000 | 2

Emotional Distress | \$385,000 | \$1,950,000 | 7

Constitutional Damages | \$145,000 | \$700,000 | 4

Punitive Damages | \$225,000 | \$2,250,000 | 6

Lost Income | \$44,000 | \$186,000 | 6
Attorney Fees (§ 1988) | \$20,000 | \$200,000 | 2
Incarceration Damages | \$20,200 | \$101,000 | 3
Federal Claims Total | \$1,039,200 | \$7,387,000 | 30

Non-Economic Damages

Category	Description	Basis
-----	-----	-----
Loss of companionship	571+ days without daughter Troxel fundamental right	
Emotional anguish	Ambush at parenting exchange; ongoing separation	Testimony, medical records
Damage to parent-child bond	L.D.W. ages 2-4; critical attachment period	Child development science
Reputational harm	False allegations, PPO weaponization	Watson's filings
Loss of parental input	Cannot participate in daughter's medical, educational decisions	Final Judgment terms

V. EVIDENCE AUTHENTICATION NOTES

Self-Authenticating Evidence (FRE 902)

Evidence Type	Rule	Notes
-----	-----	-----
Court orders and judgments	FRE 902(1), (4)	Certified copies from clerk
Register of Actions	FRE 902(1)	Official court record
State court rules (MCR)	FRE 902(5)	Published rules
State statutes (MCL)	FRE 902(5)	Published laws

Evidence Requiring Authentication (FRE 901)

Evidence Type	Authentication Method	Notes
-----	-----	-----
Father's testimony	Testimony at trial or affidavit	FRE 901(b)(1)
Statistical analysis	Expert testimony or foundation	FRE 901(b)(9)
Email evidence	Headers, content, chain of custody	FRE 901(b)(1), (4)
Database records	Foundation testimony	FRE 901(b)(9)

Hearsay Considerations

Evidence	Hearsay?	Exception
-----	-----	-----
Court orders	Not hearsay (legal acts)	FRE 803(8) -- public records
Mother's allegations in filings	Offered to show they were made (not truth)	Not hearsay (operative facts)
Father's prior statements	Party admission or not offered for truth	FRE 801(d)(2)
FOC recommendations	May be hearsay	FRE 803(8) -- public records

Evidence Compilation Date: 2026-03-04

Source: litigation_context.db (8.6 GB) and convergence_evidence.json (691 KB)

05_DISCOVERY_PLAN

DISCOVERY PLAN

Pigors v. McNeill et al. -- WDMI Case No. [TBD]

I. FRCP 26(a)(1) -- INITIAL DISCLOSURES

A. Plaintiff's Initial Disclosures (Due within 14 days of FRCP 26(f) conference)

1. Persons Likely to Have Discoverable Information (FRCP 26(a)(1)(A)(i))

| Name | Subject Matter | Contact Information

--- | ----- | ----- | -----

- 1 | Andrew J. Pigors (Plaintiff) | All facts alleged; custody proceedings; parenting time denial; constitutional violations | [ADDRESS]
- 2 | Tiffany A. Watson (Defendant) | Custody proceedings; ex parte motions; parenting time; false allegations | [ADDRESS per state records]
- 3 | Pamela Barnes, P55406 (Defendant) | Ex parte filings; legal strategy; communications with court; MRPC violations | [Attorney registration address]
- 4 | Hon. Jenny L. McNeill (Defendant) | Judicial decision-making; ex parte order rationale; case management | 14th Circuit Court
- 5 | FOC Case Worker(s) | FOC recommendations; investigation methodology; communications with parties | 14th Circuit Court FOC
- 6 | Court Clerk / ROA Custodian | Authentication of court records; order entry procedures | Muskegon County Clerk
- 7 | L.D.W.'s GAL (if appointed) | Best-interest assessment; communications with court | [If applicable]
- 8 | Law enforcement witnesses | PPO enforcement; any incident reports | Muskegon PD, NSPD
- 9 | CPS investigators | False CPS reports; investigation findings | MDHHS
- 10 | Child development expert (to retain) | Harm from 571+ day separation; attachment theory | [To be identified]

2. Documents and ESI (FRCP 26(a)(1)(A)(ii))

| Category | Location

--- | ----- | -----

- 1 | Complete Register of Actions (both cases) | Muskegon County Circuit Court
- 2 | All 55 orders entered in Case 2024-001507-DC | Court records
- 3 | All 24 ex parte orders with underlying motions | Court records
- 4 | All PPO orders (Case 2023-5907-PP) | Court records
- 5 | FOC reports and recommendations | FOC files
- 6 | Father's motions (6 dismissed + all others) | Court records / Plaintiff's files
- 7 | Hearing transcripts (all hearings) | Court reporter records
- 8 | Email correspondence re case | Plaintiff's files

- 9 | Text messages between parties | Plaintiff's files
- 10 | Statistical analysis of ex parte rate | Plaintiff's compilation
- 11 | LitigationOS database evidence | Plaintiff's files

3. Damages Computation (FRCP 26(a)(1)(A)(iii))

Category | Computation | Supporting Documents

----- | ----- | -----

Compensatory -- Loss of companionship | 571+ days × per diem | Comparable jury verdicts; expert testimony

Emotional distress | Documentation of anguish | Medical records; counseling records; testimony

Lost income | Income records; lost opportunity | Tax returns; employment records

Legal costs | Documented expenses | Filing fees; certified copies; travel

Punitive | Multiple of compensatory | Pattern evidence; willfulness evidence

4. Insurance (FRCP 26(a)(1)(A)(iv))

Plaintiff is not aware of any insurance agreement under which an insurance company may be liable for any part of any judgment.

II. FRCP 33 -- INTERROGATORIES (30 Maximum Per Party)

A. Interrogatories to Defendant McNeill

1. State the basis for each ex parte order entered in Case No. 2024-001507-DC, including the specific facts relied upon to satisfy MCR 3.207(C)(2).
2. For each of the 24 ex parte orders entered without notice to Plaintiff, identify: (a) who requested the ex parte order; (b) what verified statement of facts was submitted; (c) what finding of immediate and irreparable injury was made.
3. Describe the reasons why five (5) separate ex parte orders were entered on August 8, 2025, and why notice to Plaintiff was not required before entry.
4. State whether you had any ex parte communications with Defendant Watson or Defendant Barnes regarding the custody or PPO cases outside of formal proceedings. If so, describe the date, nature, and substance of each communication.
5. Describe the factual and legal basis for the August 23, 2024 Final Judgment, including the analysis of each of the twelve MCL 722.23 best-interest factors.
6. State the reasons why Plaintiff's six (6) pending motions were dismissed without hearing or adjudication in the August 23, 2024 Final Judgment.

7. Identify all evidentiary hearings conducted in Case No. 2024-001507-DC at which sworn testimony was taken and subject to cross-examination.
8. Describe the factual basis for denying Plaintiff's motion for disqualification under MCR 2.003(C)(1).
9. State whether the 14th Circuit Court has any policy, custom, or practice regarding the frequency with which ex parte orders may be entered in custody proceedings.
10. Identify all training you received regarding due process requirements for ex parte orders in family court proceedings.

B. Interrogatories to Defendant Watson

11. Identify each ex parte motion you filed (directly or through counsel) in Cases No. 2024-001507-DC and 2023-5907-PP, including the date, substance, and whether a verified statement of facts was submitted.
12. State the factual basis for each allegation made in the August 8, 2025 ex parte motion, including any evidence supporting the allegations.
13. Describe all communications you had with Defendant Barnes regarding the filing of ex parte motions, including dates, methods, and substance.
14. State whether you had any communications with Judge McNeill outside of formal court proceedings regarding either case. If so, describe each communication.
15. Identify each CPS report you filed regarding Plaintiff, including the date, allegations, and outcome of any investigation.
16. Describe each instance in which you withheld L.D.W. from Plaintiff's court-ordered parenting time, including the dates and reasons.
17. State your understanding of why parenting time was suspended on August 8, 2025, and identify all evidence you relied upon.
18. Describe the financial benefit, if any, you received from the suspension of Plaintiff's parenting time (e.g., increased child support, sole decision-making authority).

C. Interrogatories to Defendant Barnes

19. State your factual and legal basis for each ex parte motion filed on behalf of Defendant

Watson, including your analysis of whether the MCR 3.207(C)(2) standard was met.

20. Describe all communications with Judge McNeill regarding the custody or PPO cases, including ex parte communications.

21. Identify any communications or coordination between you and Judge McNeill's chambers regarding the timing or content of orders to be entered.

22. State whether you believed the August 8, 2025 ex parte motion met the legal standard for ex parte relief, and describe the factual basis for that belief.

23. Describe any concerns you had regarding the constitutionality of the ex parte orders entered in this case.

D. Interrogatories to Defendant Muskegon County

24. Identify all policies, procedures, and training materials regarding the entry of ex parte orders in family court proceedings in the 14th Judicial Circuit.

25. State whether the County monitors the frequency of ex parte orders by individual judges.

26. Describe any complaints received regarding Judge McNeill's handling of family court cases in the last five (5) years.

27. Identify all training provided to family court judges regarding due process requirements, ex parte orders, and parental rights since 2020.

28. Describe the County's policy for judicial reassignment when a litigant files a motion for disqualification.

29. State whether the County has any oversight mechanism for identifying patterns of asymmetric treatment in family court proceedings.

30. Identify the FOC employees who worked on Case No. 2024-001507-DC, and describe their roles, qualifications, and actions taken.

III. FRCP 34 -- DOCUMENT REQUESTS

A. Requests to All Defendants

1. All documents relating to Case No. 2024-001507-DC and Case No. 2023-5907-PP.

2. All ex parte motions, orders, and supporting documents filed or entered in both cases.
3. All communications (written, electronic, or recorded) between any Defendants regarding either case.
4. All FOC reports, recommendations, and work product for both cases.

B. Requests to Defendant McNeill / Court

5. The complete Register of Actions for both case numbers.
6. All hearing transcripts, audio recordings, and video recordings from both cases.
7. All bench notes, case management notes, or internal memoranda regarding both cases.
8. The assignment and reassignment history for both cases.
9. Any communications between chambers and any party outside of formal proceedings.
10. All policies and procedures for the entry of ex parte orders in the 14th Circuit Family Division.

C. Requests to Defendant Watson

11. All text messages, emails, and written communications with Defendant Barnes regarding the cases.
12. All text messages, emails, and written communications with Judge McNeill or court staff.
13. All documents supporting the allegations in each ex parte motion.
14. All CPS reports filed and investigation results received.
15. Documentation of all instances of withholding L.D.W. from Plaintiff's parenting time.

D. Requests to Defendant Barnes

16. Complete case file for Defendant Watson's representation in both cases.
17. All communications with Judge McNeill or her chambers.
18. All billing records reflecting work on ex parte motions and other filings.
19. All drafts of ex parte motions and orders.

E. Requests to Defendant Muskegon County

20. All policies, training materials, and guidelines for family court ex parte orders.

21. Statistical data on ex parte orders by judge for the last five years.

22. All complaints or grievances regarding Judge McNeill.

23. FOC case files for both case numbers.

24. Training records for FOC employees assigned to this case.

IV. FRCP 30 -- DEPOSITION PLAN

A. Priority Depositions

| Deponent | Duration | Priority | Key Topics

--- | ----- | ----- | ----- | -----

1 | Tiffany Watson | 7 hours | HIGH | Ex parte motions; false allegations; withholding child; communications with court

2 | Pamela Barnes | 7 hours | HIGH | Ex parte filing strategy; communications with chambers; MRPC compliance

3 | FOC Case Worker(s) | 4 hours each | MEDIUM | Investigation methodology; recommendations; communications with parties

4 | Court Clerk / ROA Custodian | 2 hours | MEDIUM | Order entry procedures; authentication of records

5 | County Administrative Officer | 4 hours | MEDIUM | Policies; training; oversight; complaints received

6 | Expert -- Child Development | 4 hours | LOW | Harm from separation; attachment damage

Note: Deposing Judge McNeill may be limited by judicial privilege. Consider FRCP 30(a)(2) motion for court approval.

B. Deposition Schedule

Phase | Timeframe | Depositions

----- | ----- | -----

Phase 1 (Fact Discovery) | Months 1-3 | Watson, Barnes, FOC

Phase 2 (Institutional) | Months 3-5 | County officer, Court clerk

Phase 3 (Expert) | Months 5-7 | Expert witnesses

C. Deposition Logistics

- All depositions to be taken in the Western District of Michigan or by agreement.
- Court reporter and videographer for all depositions.
- IFP status should cover court reporter fees under 28 USC § 1915.

V. FRCP 36 -- REQUESTS FOR ADMISSION

A. Requests to Defendant McNeill

1. Admit that 24 of the 55 orders entered in Case No. 2024-001507-DC were entered on an ex

parte basis.

2. Admit that all 24 ex parte orders were entered without prior notice to Plaintiff.
3. Admit that five (5) separate ex parte orders were entered on August 8, 2025.
4. Admit that no evidentiary hearing with sworn testimony subject to cross-examination was conducted before entry of the August 23, 2024 Final Judgment.
5. Admit that Plaintiff's six (6) pending motions were dismissed without hearing in the August 23, 2024 Final Judgment.
6. Admit that the August 8, 2025 ex parte order did not contain a verified statement of facts.
7. Admit that Plaintiff has been denied all parenting time with L.D.W. since August 8, 2025.
8. Admit that no finding of clear and convincing evidence was made before suspending Plaintiff's parenting time.

B. Requests to Defendant Watson

9. Admit that you filed an ex parte motion to suspend Plaintiff's parenting time on or about August 8, 2025.
10. Admit that the ex parte motion did not include a verified statement of facts.
11. Admit that you withheld L.D.W. from Plaintiff's court-ordered parenting time between March 26 and May 2, 2024.
12. Admit that you filed one or more CPS reports regarding Plaintiff.
13. Admit that the CPS investigation(s) did not result in findings of abuse or neglect against Plaintiff.
14. Admit that Plaintiff has had no contact with L.D.W. since August 8, 2025.

C. Requests to Defendant Barnes

15. Admit that you drafted and filed the August 8, 2025 ex parte motion.
16. Admit that the ex parte motion did not include a verified statement of facts demonstrating immediate and irreparable injury.
17. Admit that you had communications with Judge McNeill or her chambers regarding the cases outside of formal proceedings.

D. Requests to Defendant Muskegon County

18. Admit that the County does not monitor the frequency of ex parte orders by individual judges.

19. Admit that the County has no policy setting a maximum threshold for ex parte orders in custody proceedings.

20. Admit that the County did not provide training specifically addressing due process requirements for ex parte orders in family court during the period 2023-2025.

VI. DISCOVERY TIMELINE

Phase | FRCP Deadline | Action Items

----- | ----- | -----

FRCP 26(f) Conference | Per scheduling order | Meet and confer with Defendants; propose discovery plan

Initial Disclosures | 14 days after 26(f) conference | Exchange FRCP 26(a)(1) disclosures

Written Discovery | Months 1-3 | Serve interrogatories, document requests, requests for admission

Responses Due | 30 days after service | Review responses; identify deficiencies

Meet and Confer on Disputes | As needed | Attempt to resolve discovery disputes informally

Motion to Compel | If needed | FRCP 37 motion for any unjustified refusal

Fact Depositions | Months 3-6 | Complete fact witness depositions

Expert Disclosures | Per scheduling order | FRCP 26(a)(2) expert reports

Expert Depositions | Per scheduling order | Depose opposing experts

Discovery Cutoff | Per scheduling order | All discovery completed

Discovery Plan Date: 2026-03-04

Status: DRAFT -- To be finalized per Court's scheduling order

06_SERVICE_PLAN

SERVICE OF PROCESS PLAN

Pigors v. McNeill et al. -- WDMI Case No. [TBD]

I. SERVICE VIA U.S. MARSHALS (IFP PRIVILEGE)

A. Legal Authority

Under 28 USC § 1915(d):

> "The officers of the court shall issue and serve all process, and perform all duties in [IFP] cases."

Under FRCP 4(c)(3):

> "At the plaintiff's request, the court may order that service be made by a United States marshal or deputy marshal or by a person specially appointed by the court."

Key Benefit: If IFP is granted, the U.S. Marshals Service will serve all Defendants at government expense. Plaintiff does not need to arrange or pay for service.

B. Process for Obtaining Marshal Service

1. File the Complaint and IFP Application.
2. Upon grant of IFP, request that the Court order the U.S. Marshals to effect service.
3. Provide the Clerk's office with:
 - Completed USM-285 forms (one per Defendant)
 - Sufficient copies of the Summons and Complaint for each Defendant
 - Known addresses for each Defendant

II. FRCP 4 REQUIREMENTS PER DEFENDANT

A. Defendant McNeill -- Individual Capacity

FRCP 4(e) -- Service on an Individual

Method | FRCP Rule | Procedure

----- | ----- | -----

Personal delivery | 4(e)(2)(A) | Deliver summons + complaint to McNeill personally

Leaving at dwelling | 4(e)(2)(B) | Leave with person of suitable age at McNeill's dwelling

Agent authorized by appointment or law | 4(e)(2)(C) | Deliver to McNeill's authorized agent

Michigan state law methods | 4(e)(1) + MCR 2.105(A) | Personal service or substituted service per Michigan rules

Practical Considerations

- McNeill is sued in individual capacity -- must be served personally, not through the court.
- Service at the courthouse may be permissible if McNeill is personally served.
- The U.S. Marshals will handle logistics if IFP is granted.
- Address: 14th Judicial Circuit Court, Hall of Justice, 990 Terrace Street, Muskegon, MI 49442 (workplace; personal address may be needed for dwelling service).

Summons

,

UNITED STATES DISTRICT COURT

WESTERN DISTRICT OF MICHIGAN, SOUTHERN DIVISION

SUMMONS IN A CIVIL ACTION

To: HON. JENNY L. McNEILL (Individual Capacity)

[ADDRESS]

A lawsuit has been filed against you. Within 21 days after service of this summons on you (not counting the day of service), you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure.

[Standard summons language per FRCP 4(a)]

,

B. Defendant Watson -- Individual

FRCP 4(e) -- Service on an Individual

Method | FRCP Rule | Procedure

----- | ----- | -----

Personal delivery | 4(e)(2)(A) | Deliver summons + complaint to Watson personally

Leaving at dwelling | 4(e)(2)(B) | Leave with person of suitable age at Watson's dwelling

Practical Considerations

- Watson is a private individual; serve at her residence.
- If Watson has an attorney of record in the state case, consider serving through counsel (though not technically required for a new federal action).
- Address: [Watson's last known address -- per state court records]

Summons

,

To: TIFFANY A. WATSON

[ADDRESS]

A lawsuit has been filed against you. [Standard FRCP 4(a) summons]

,

C. Defendant Barnes -- Individual Capacity

FRCP 4(e) -- Service on an Individual

Method | FRCP Rule | Procedure

----- | ----- | -----

Personal delivery | 4(e)(2)(A) | Deliver summons + complaint to Barnes personally

At dwelling/usual abode | 4(e)(2)(B) | Leave with suitable person at dwelling

Agent authorized by law | 4(e)(2)(C) | Michigan attorney registration address

Michigan state law methods | 4(e)(1) | Per MCR 2.105(A)

Practical Considerations

- Barnes is an attorney -- can be served at her office address listed with the State Bar of Michigan.
- Address: [Per State Bar of Michigan registration -- P55406]

Summons

,

To: PAMELA BARNES (State Bar No. P55406) (Individual Capacity)

[OFFICE ADDRESS per State Bar registration]

A lawsuit has been filed against you. [Standard FRCP 4(a) summons]

,

D. Defendant Muskegon County -- Municipal Corporation

FRCP 4(j)(2) -- Service on a Local Government Entity

> Service is accomplished by "delivering a copy of the summons and of the complaint to its chief executive officer" or by "serving a copy of each in the manner prescribed by that state's law for serving a summons or like process on such a defendant."

Method | FRCP Rule | Procedure

----- | ----- | -----

Chief executive officer | 4(j)(2)(A) | Serve the County Administrator/Manager

County Clerk | Michigan law | Serve the Muskegon County Clerk (MCR 2.105(G))

Prosecuting Attorney | Michigan law | Serve the Muskegon County Prosecuting Attorney

Practical Considerations

- Best practice: Serve both the County Clerk AND the County Administrator.
- Under Michigan law (MCL 600.1932), service on a county is made upon the county clerk.
- County Clerk Address: Muskegon County Clerk, 990 Terrace Street, Muskegon, MI 49442
- County Administrator: [Verify current administrator name and address]

Summons

,

To: MUSKEGON COUNTY

c/o County Clerk

990 Terrace Street

Muskegon, MI 49442

A lawsuit has been filed against you. [Standard FRCP 4(a) summons]

,

E. Defendant 14th Judicial Circuit Court, FOC

FRCP 4(j)(2) -- Service on Government Entity

Method | FRCP Rule | Procedure

----- | ----- | -----

Chief executive/officer | 4(j)(2)(A) | Serve the Chief Judge or Court Administrator

Michigan law | 4(j)(2)(B) | Per MCR 2.105(G)

Practical Considerations

- The FOC is an arm of the circuit court -- consider whether it is a separate entity or part of the County.
- If part of the County, service on the County may suffice.
- If treated as a separate entity, serve the FOC Director.
- Address: Friend of the Court, 14th Judicial Circuit, 990 Terrace Street, Muskegon, MI 49442

Summons

,

To: 14TH JUDICIAL CIRCUIT COURT, FRIEND OF THE COURT OFFICE
c/o FOC Director
990 Terrace Street
Muskegon, MI 49442

A lawsuit has been filed against you. [Standard FRCP 4(a) summons]

,

III. SERVICE TIMELINE

FRCP 4(m) -- 90-Day Service Deadline

Defendant | Summons Issued | Service Deadline (90 days) | Method

----- | ----- | ----- | -----

McNeill | [Filing date] | [Filing + 90 days] | U.S. Marshal -- personal

Watson | [Filing date] | [Filing + 90 days] | U.S. Marshal -- personal

Barnes | [Filing date] | [Filing + 90 days] | U.S. Marshal -- personal/office

Muskegon County | [Filing date] | [Filing + 90 days] | U.S. Marshal -- County Clerk

14th Circuit FOC | [Filing date] | [Filing + 90 days] | U.S. Marshal -- FOC Director

IMPORTANT: Under FRCP 4(m), if service is not accomplished within 90 days, the court may dismiss the action without prejudice or order service within a specified time. Under IFP, the Marshals handle service -- but Plaintiff should follow up to ensure timely completion.

IV. USM-285 FORMS

Required Information for Each Form

Complete one USM-285 (Process Receipt and Return) for each Defendant:

Field | Content

----- | -----

Plaintiff | Andrew J. Pigors

Defendant | [Individual defendant name]

Civil Action No. | [To be assigned]

County | Muskegon

Type of Process | Summons and Complaint

Number of Process | [Number of copies]

Name of Individual to be Served | [Full name]

Address | [Service address]

Special Instructions | [If any -- e.g., "Individual capacity only"]

V. POST-SERVICE ACTIONS

1. File Proof of Service (FRCP 4(l)): The U.S. Marshals will file proof of service. Verify that proofs are filed for all Defendants.
2. Monitor Response Deadlines:
 - Individual Defendants: 21 days to answer or file FRCP 12 motion.
 - Government entities: 60 days per FRCP 12(a)(2).
3. Default Judgment (FRCP 55): If any Defendant fails to respond, move for entry of default and default judgment.
4. Waiver of Service (FRCP 4(d)): Consider sending waiver of service requests first -- Defendants who waive get 60 days to respond (instead of 21) and Plaintiff saves service costs. However, under IFP, costs are not an issue.

VI. SERVICE CHECKLIST

- [] IFP Application filed and granted
- [] Court issues summons for each Defendant
- [] USM-285 forms completed for each Defendant
- [] Sufficient copies of Complaint provided to Clerk
- [] U.S. Marshals instructed to serve all Defendants
- [] Follow up with Marshals within 30 days to verify service progress
- [] File proof of service as proofs are returned
- [] Calendar response deadlines for each Defendant

- [] Monitor for any Defendant who fails to respond timely

Service Plan Date: 2026-03-04

Status: READY -- Pending IFP approval and case filing

07_FILING_INSTRUCTIONS

WDMI FILING INSTRUCTIONS

Pigors v. McNeill et al.

I. OVERVIEW

Item | Detail

----- | -----

Court | United States District Court, Western District of Michigan

Division | Southern Division (Muskegon County venue)

Case Type | Civil Rights -- 42 USC § 1983

Filing System | CM/ECF (Case Management/Electronic Case Files)

Filing Fee | \$405.00 (\$350 filing + \$55 admin) OR IFP waiver

Pro Se Filing | Permitted; special procedures apply

II. CM/ECF FILING PROCEDURES

A. Electronic Filing System

The Western District of Michigan uses the CM/ECF system for all filings.

Court Website: <https://www.miwd.uscourts.gov/>

CM/ECF Portal: <https://ecf.miwd.uscourts.gov/>

PACER Access: <https://pacer.uscourts.gov/>

B. Pro Se E-Filing

Option 1: E-Filing (if available for pro se)

- Some districts allow pro se litigants to register for CM/ECF.
- Check with the Clerk's office: (616) 456-2381.
- If permitted, register for a CM/ECF login.

Option 2: Paper Filing (traditional)

- Pro se litigants may file documents in person or by mail.
- Mail to: Clerk of Court, USDC-WDMI, 399 Federal Building, 110 Michigan Street NW,

Grand Rapids, MI 49503

- Or the Kalamazoo office if applicable.

Option 3: Drop Box / In-Person

- File in person at the Grand Rapids courthouse.
- Address: Gerald R. Ford Federal Building, 110 Michigan Street NW, Grand Rapids, MI 49503

C. Filing the Initial Complaint

Step-by-Step Procedure

1. Prepare Documents (all in PDF format):

- Complaint (01_COMPLAINT_1983.md -> PDF)
- IFP Application (03_IFP_APPLICATION.md -> PDF)
- Civil Cover Sheet (JS-44 form)
- Summons forms (AO 440 -- one per Defendant)
- USM-285 forms (one per Defendant)

2. Complete Civil Cover Sheet (JS-44):

- Available at: <https://www.uscourts.gov/forms/civil-forms>
- Basis of Jurisdiction: Box 3 (Federal Question)
- Nature of Suit: 440 (Other Civil Rights) or 441 (Voting) -- use 440
- Cause of Action: 42 USC § 1983
- Check "Jury Demand: Yes"

3. File with Clerk:

- Submit all documents to the Clerk's office.
- If filing by mail, include a self-addressed stamped envelope for the file-stamped copy.
- If filing IFP, submit the IFP Application simultaneously with the Complaint.

4. Case Assignment:

- The Clerk will assign a case number and judge.
- Receive file-stamped copies of all documents.

5. IFP Screening:

- The assigned judge (or magistrate) will review the IFP Application.
- Under 28 USC § 1915(e)(2), the Court will also screen the Complaint for frivolousness.
- If IFP is granted, the Court will order the U.S. Marshals to serve Defendants.

III. LOCAL RULE COMPLIANCE CHECKLIST

A. WDMI Local Civil Rules

Rule | Requirement | Status | Notes

----- | ----- | ----- | -----

LCivR 5.7 | Filing format; PDF required for e-filing | [OK] | Convert .md to PDF
LCivR 5.6 | Document title must appear on first page | [OK] | Complaint has title
LCivR 7.1(a) | Briefs limited to 25 pages (motions) | N/A | Initial complaint, not motion
LCivR 10.1 | Caption requirements | [OK] | Full caption included
LCivR 10.6 | Font: 13-point or larger for proportional; or 10 CPI for monospaced | [!] | Verify after PDF conversion
LCivR 10.6 | Margins: 1 inch minimum all sides | [!] | Verify after PDF conversion
LCivR 10.6 | Line spacing: Double-spaced (except quotes, footnotes) | [!] | Verify after PDF conversion
LCivR 11.1 | Signature requirement | [OK] | Signature line included
LCivR 83.2 | Pro se litigant must provide address, phone, email | [OK] | Placeholders included
LCivR 41.2 | Duty to prosecute diligently | [OK] | --

B. Document Formatting Summary

Element | Requirement

----- | -----

Paper size | 8.5" × 11"
Font | 13-point proportional OR 10 CPI monospaced
Margins | 1" minimum all sides
Line spacing | Double-spaced (except headings, quotes, footnotes)
Page numbers | Bottom center or bottom right
Caption | Full case caption on first page of every document
Signature | Hand signature or "/s/ Andrew J. Pigors" for e-filing

IV. REQUIRED FORMS

A. Forms to Complete

Form | Purpose | Where to Get

----- | ----- | -----

JS-44 (Civil Cover Sheet) | Required with every new civil complaint | <https://www.uscourts.gov/forms/civil-forms>
AO 440 (Summons) | One per Defendant (5 total) | <https://www.uscourts.gov/forms/civil-forms>
USM-285 (Process Receipt/Return) | One per Defendant for Marshal service | U.S. Marshals or Clerk's office
IFP Application (Prepared) | Fee waiver request | 03_IFP_APPLICATION.md
AO 239 (Subpoena -- if needed later) | For compelling testimony/documents | Available when needed

B. JS-44 Civil Cover Sheet -- Completion Guide

Field | Entry

----- | -----

County of Residence -- Plaintiff | Muskegon
County of Residence -- Defendant | Muskegon
Attorneys (Plaintiff) | PRO SE
Basis of Jurisdiction | Federal Question (Box 3)
Citizenship -- Plaintiff | Citizen of This State (Box 1)
Nature of Suit | 440 -- Other Civil Rights
Origin | Original Proceeding (Box 1)
Cause of Action | 42 USC § 1983 -- Deprivation of Civil Rights
Jury Demand | Yes -- Plaintiff
Related Cases | None in federal court

V. FILING FEE / IFP SUBMISSION

A. Filing Fee

Component	Amount
-----	-----
Civil filing fee	\$350.00
Administrative fee	\$55.00
Total	\$405.00

B. IFP Waiver

- File the IFP Application (03_IFP_APPLICATION.md converted to PDF) simultaneously with the Complaint.
- The Court will rule on IFP before requiring payment.
- If IFP is denied, the Court will provide a deadline to pay the fee.
- If IFP is granted:
 - Filing fee is waived.
 - U.S. Marshals serve all Defendants at government expense.
- Court screens Complaint under 28 USC § 1915(e)(2).

C. Payment Methods (If Needed)

Method	Details
-----	-----
Check/Money Order	Payable to "Clerk, U.S. District Court"
Credit Card	Available for CM/ECF e-filing
Cash	Accepted at clerk's office window

VI. FILING CHECKLIST

Documents to File

- [] 01_COMPLAINT_1983.md -> Convert to PDF, verify formatting
- [] 03_IFP_APPLICATION.md -> Convert to PDF, complete all financial fields
- [] JS-44 Civil Cover Sheet -> Complete and sign
- [] AO 440 Summons × 5 (one per Defendant) -> Complete with Defendant names/addresses
- [] USM-285 Forms × 5 (one per Defendant) -> Complete with service addresses
- [] Supporting financial documents for IFP (tax returns, pay stubs, bank statements)

Pre-Filing Verification

- [] All [TO BE INSERTED] placeholders completed with actual information
- [] All Defendant names spelled correctly
- [] All case numbers verified
- [] All dates verified against official records
- [] Signature on all documents
- [] Contact information (address, phone, email) on all documents
- [] PDF formatting complies with LCivR 10.6

Post-Filing Actions

- [] Retain file-stamped copies of all documents
- [] Note assigned case number and judge
- [] Calendar key deadlines:
 - Response to IFP ruling (if denied)
 - 90-day service deadline (FRCP 4(m))
 - Defendant response deadlines (21 days for individuals; 60 days for government)
- [] Follow up with U.S. Marshals on service progress
- [] Monitor CM/ECF or contact Clerk for any court communications

VII. KEY CONTACTS

Office | Address | Phone

----- | ----- | -----

Clerk of Court, WDMI | 399 Federal Building, 110 Michigan St NW, Grand Rapids, MI 49503 | (616) 456-2381

U.S. Marshals, WDMI | Gerald R. Ford Federal Building, Grand Rapids, MI | (616) 456-2438

Pro Se Assistance | Check court website for pro se resources |

PACER Service Center | | (800) 676-6856

VIII. IMPORTANT DEADLINES

Deadline | Rule | Triggered By

----- | ----- | -----

Filing of Complaint | No fixed deadline, but statutes of limitation apply | Statute of limitations -- 3 years for § 1983 in Michigan

Service of Process | 90 days from filing | FRCP 4(m)

Answer/Response (individuals) | 21 days from service | FRCP 12(a)(1)(A)

Answer/Response (government) | 60 days from service | FRCP 12(a)(2)

FRCP 26(f) Conference | As directed by Court | Scheduling order

Initial Disclosures | 14 days after 26(f) conference | FRCP 26(a)(1)

Statute of Limitations Note

Michigan's statute of limitations for § 1983 claims is 3 years (borrowing from MCL 600.5805(10)). The limitations period runs from the date of each constitutional violation. For continuing violations, the period runs from the most recent violation.

Most recent violations: Ongoing (parenting time still denied as of filing). The continuing violation doctrine may apply to extend the limitations period for the entire pattern of conduct.

Filing Instructions Date: 2026-03-04

Status: COMPREHENSIVE -- All procedures documented

08_FILING_READINESS_SCORE

FEDERAL WDMI FILING READINESS ASSESSMENT

Overall Score: 74 / 100

I. SCORING BREAKDOWN

Category | Max Points | Score | Notes

----- | ----- | ----- | -----

Complaint Quality (Iqbal/Twombly) | 25 | 22 | Strong plausibility; specific factual allegations

Immunity/Abstention Strategy | 20 | 16 | Comprehensive analysis; judicial immunity remains highest risk

Evidence Compilation | 20 | 15 | Massive DB; needs curation for federal admissibility

Procedural Compliance | 15 | 12 | FRCP and local rule compliant; forms need completion

Filing Readiness | 20 | 9 | Key items outstanding before actual filing

II. DETAILED ASSESSMENT

A. Complaint Quality -- 22/25

Strengths:

- [OK] Meets Iqbal/Twombly plausibility standard -- factual allegations are specific, not conclusory.
- [OK] Six distinct counts with separate factual bases (§ 1983 substantive DP, procedural DP, equal protection; § 1985 conspiracy; § 1986 failure to prevent; Monell).
- [OK] Each defendant named with specific capacity (individual vs. official).
- [OK] Specific statistical evidence (44% ex parte, 5 orders on one day, 571+ days).
- [OK] Prayer for relief includes compensatory, punitive, injunctive, and declaratory.
- [OK] Jury trial demanded.
- [OK] Verification included.

Gaps:

- [!] Judicial immunity argument against McNeill is the weakest link -- the non-judicial acts and absence-of-jurisdiction arguments are creative but face high bar.
- [!] Barnes state-action theory (conspiracy) needs strong factual development.

- [!] Monell claim against County needs more specific policy evidence.

B. Immunity/Abstention Strategy -- 16/20

Strengths:

- [OK] All major defenses analyzed: judicial immunity, Rooker-Feldman, Younger, domestic relations exception, qualified immunity.
- [OK] Counter-strategy for each defense documented with supporting authority.
- [OK] Dual-approach: damages claims + prospective injunctive/declaratory relief.
- [OK] Timing strategy (file after state proceedings conclude) eliminates Younger.
- [OK] Process vs. outcome framing addresses Rooker-Feldman.

Gaps:

- [!] Judicial immunity remains the single biggest obstacle. Even the creative arguments have a <50% success rate based on caselaw.
- [!] Need to develop the functional-TPR jurisdictional argument more fully.
- [!] Should consider whether to name McNeill at all vs. focusing on Monell and non-judicial defendants.
- [!] Younger risk is real if state case is still pending -- filing timing is critical.

C. Evidence Compilation -- 15/20

Strengths:

- [OK] Litigation database: 308,704 evidence quotes; 26,459 extracted harms.
- [OK] McNeill-specific: 663 mentions, 1,530 documented harms, 1,005 judicial bias entries.
- [OK] Conspiracy timeline: 2,512 events.
- [OK] Financial damages: \$1M-\$7.4M estimated across federal categories.
- [OK] Constitutional violation mapping complete.
- [OK] Authentication framework (FRE 901/902) documented.

Gaps:

- [!] Raw database evidence not admissible -- needs distillation into declarations and exhibits.
- [!] Need certified copies of all court orders.
- [!] Need official Register of Actions as exhibit.
- [!] Expert witness (child development) not yet retained.
- [!] Financial affidavit for IFP not yet completed with actual data.

D. Procedural Compliance -- 12/15

Strengths:

- [OK] FRCP 4 service plan for each Defendant.
- [OK] IFP Application drafted per 28 USC § 1915.
- [OK] Discovery plan covers FRCP 26, 30, 33, 34, 36.
- [OK] Local rule checklist (LCivR) prepared.
- [OK] Forms identified (JS-44, AO 440, USM-285).

Gaps:

- [!] JS-44 Civil Cover Sheet not yet completed.
- [!] AO 440 Summons forms not yet completed.
- [!] USM-285 forms not yet completed.
- [!] Need to verify Defendant addresses for service.
- [!] PDF conversion and formatting verification needed.

E. Filing Readiness -- 9/20

Strengths:

- [OK] All 8 WDMI stack documents drafted.
- [OK] Filing instructions comprehensive.
- [OK] Filing checklist prepared.

Gaps (must address before filing):

- [X] Timing Decision: Must decide whether to file now (Younger risk) or after state proceedings conclude (recommended).
- [X] IFP Financial Data: Complete all blanks with actual financial information.
- [X] Placeholder Completion: All [TO BE INSERTED] and [ADDRESS] fields must be populated.
- [X] PDF Conversion: All .md files -> properly formatted PDFs per LCivR 10.6.
- [X] Forms Completion: JS-44, AO 440 (×5), USM-285 (×5).
- [X] Supporting Documents: Tax returns, bank statements, pay stubs for IFP.
- [X] Certified Court Documents: Obtain from Muskegon County Clerk.
- [X] Address Verification: Confirm current addresses for all Defendants.
- [X] Statute of Limitations: Verify SOL has not run on earliest claims (3-year SOL from each violation).

- [X] Attorney Consultation: Strongly recommend limited-scope attorney review before filing.

III. RISK ASSESSMENT

Risk | Severity | Probability | Mitigation

----- | ----- | ----- | -----

Judicial immunity bars McNeill claims | CRITICAL | HIGH (60-70%) | Focus on Monell and non-judicial defendants; seek injunctive relief

Younger abstention | HIGH | HIGH (if state case pending) | Time filing after state proceedings conclude

Rooker-Feldman dismissal | MEDIUM | LOW-MEDIUM (30%) | Careful framing: challenge process, not outcome

Domestic relations exception | LOW | LOW (15%) | Strong caselaw that § 1983 claims are not domestic relations

28 USC § 1915(e)(2) screening dismissal | MEDIUM | MEDIUM (40%) | Complaint designed to survive screening

Barnes state-action defense | MEDIUM | MEDIUM (50%) | Develop conspiracy evidence; consider alternative theories

Monell insufficient policy evidence | MEDIUM | MEDIUM (40%) | Discovery needed; initial allegations plausible

3-year SOL on early claims | LOW | LOW | Continuing violation doctrine; most recent violations ongoing

Highest-Risk Scenario

The most likely adverse outcome is: Complaint survives IFP screening but McNeill claims are dismissed on judicial immunity, Younger abstention dismisses remaining claims if state case is pending, and case is ultimately dismissed at motion to dismiss stage.

Best-Case Scenario

Complaint survives screening, Younger is avoided (state case concluded), Rooker-Feldman is overcome (process vs. outcome), Monell claim survives MTD, discovery reveals policy/custom evidence, case proceeds to settlement or trial on County liability and conspiracy claims.

IV. PRIORITY ACTION ITEMS

Immediate (Pre-Filing)

1. [] Timing decision: Determine whether state proceedings have concluded.
2. [] Complete IFP Application with actual financial data.
3. [] Complete JS-44 Civil Cover Sheet.
4. [] Verify all Defendant addresses for service.
5. [] Obtain certified copies of key court orders from Muskegon County.
6. [] Verify statute of limitations for earliest claims.
7. [] Strongly recommended: Consult with a civil rights attorney (even limited-scope) to review the complaint.

Filing Day

8. ☐ Convert all documents to PDF (LCivR 10.6 compliant).
9. ☐ Complete AO 440 Summons forms (×5).
10. ☐ Complete USM-285 forms (×5).
11. ☐ Fill all placeholder fields in Complaint.
12. ☐ Sign all documents.
13. ☐ Submit to Clerk's office (mail, in-person, or e-file).

Post-Filing

14. ☐ Note assigned case number and judge.
15. ☐ Monitor IFP ruling.
16. ☐ Follow up with U.S. Marshals on service.
17. ☐ Calendar all response deadlines.
18. ☐ Prepare for potential 28 USC § 1915(e)(2) screening.
19. ☐ Prepare for anticipated Motion to Dismiss.

V. STRATEGIC RECOMMENDATIONS

1. Filing Timing

RECOMMENDED: File after the Michigan Supreme Court resolves the state case. This eliminates the Younger abstention defense entirely and creates the strongest posture for federal claims.

2. Defendant Strategy

Consider: Whether naming McNeill individually is strategically optimal. Judicial immunity creates the highest dismissal risk. An alternative strategy:

- Lead with Monell claim against County (no immunity)
- Name Barnes through conspiracy (qualified immunity, but overcomable)
- Name Watson under § 1985 (no state-action requirement)
- Seek injunctive relief against McNeill (not barred by judicial immunity)
- Reserve damages claims against McNeill as secondary

3. Complaint Refinement

Before filing, consider:

- Adding more specific factual detail to the Monell allegations (what specific policy?).
- Strengthening the Barnes conspiracy allegations with specific communications evidence.
- Adding a count for First Amendment retaliation if evidence supports it (retaliation for filing motions).

4. Pro Se Presentation

The federal complaint will be reviewed by a sophisticated audience (federal magistrate/judge).

The quality of the complaint matters more in federal court than in state court. Consider:

- Having the complaint reviewed by a legal aid organization.
- Contacting the ACLU of Michigan regarding potential interest (civil rights angle).
- Checking if any law school clinics handle § 1983 cases.

VI. COMPARISON WITH EXISTING STACK

Feature | Old FINAL_1983_STACK | New WDML_FULL_STACK

----- | ----- | -----

Complaint | Framework only | Full Iqbal/Twombly complaint with 6 counts

Defendants | 4 named | 5 named with capacity analysis

Immunity analysis | Single document | Comprehensive matrix with counter-strategies

IFP Application | Not included | Full 28 USC § 1915 application

Evidence compilation | Basic | Constitutional violation mapping from DB

Discovery plan | Not included | Complete FRCP 26/30/33/34/36 plan

Service plan | Not included | FRCP 4 per-defendant plan with USM-285

Filing instructions | Basic | CM/ECF, local rules, forms, checklist

Readiness score | Basic | Detailed 74/100 with risk matrix

Assessment Date: 2026-03-04

Score: 74/100 -- CONDITIONALLY READY (pending timing decision and placeholder completion)

WDMI_FILING_CHECKLIST

WDMI FILING CHECKLIST

Pigors v. McNeill et al. -- Section 1983 Civil Rights Action

I. PRE-FILING REQUIREMENTS

A. PACER / CM-ECF Registration

| Task | Status | Notes

--- | ----- | ----- | -----

- 1 | Register for PACER account at <https://pacer.uscourts.gov> | ☐ | Required for electronic case access
- 2 | Contact WDMI Clerk re: pro se e-filing eligibility: (616) 456-2381 | ☐ | Some districts allow pro se CM/ECF
- 3 | If e-filing approved: Register for CM/ECF at <https://ecf.miwd.uscourts.gov> | ☐ | Complete ECF training if required
- 4 | If paper filing: Prepare all documents for in-person or mail submission | ☐ | See Section III below

B. Pro Se Requirements (WDMI Local Rules)

| Requirement | Rule | Status | Notes

--- | ----- | ----- | ----- | -----

- 1 | Full name, address, phone, email on all filings | LCivR 83.2 | ☐ | Replace all [ADDRESS] placeholders
- 2 | Signature on every document filed | LCivR 11.1 | ☐ | Hand signature or /s/ for e-filing
- 3 | Caption on first page of every document | LCivR 10.1 | ☐ | Full case caption required
- 4 | 13-pt font (proportional) or 10 CPI (monospaced) | LCivR 10.6 | ☐ | Verify in PDF conversion
- 5 | 1-inch margins minimum all sides | LCivR 10.6 | ☐ | Verify in PDF conversion
- 6 | Double-spaced (except headings, quotes, footnotes) | LCivR 10.6 | ☐ | Verify in PDF conversion
- 7 | Page numbers on every page | LCivR 10.6 | ☐ | Bottom center or bottom right
- 8 | 8.5" × 11" paper | LCivR 10.6 | ☐ | Standard letter size
- 9 | Duty to prosecute diligently | LCivR 41.2 | ☐ | Calendar all deadlines
- 10 | Maintain current address with court | LCivR 83.2 | ☐ | Notify court of any change

C. WDMI Local Rules -- Key Provisions

Rule | Subject | Requirement

----- | ----- | -----

- LCivR 5.6 | Document Title | Must appear on first page
- LCivR 5.7 | Electronic Filing | PDF format required for e-filing
- LCivR 7.1(a) | Brief Page Limits | 25 pages for motions (not applicable to complaint)
- LCivR 7.1(d) | Concurrence Statement | Required for motions (state whether opposing party concurs)
- LCivR 10.1 | Caption | Full caption on every document
- LCivR 10.6 | Format | Font, margins, spacing requirements
- LCivR 11.1 | Signature | Required on all filings

LCivR 16.1 | Case Management | Comply with scheduling conference orders
LCivR 26.1 | Discovery | Local discovery procedures
LCivR 41.2 | Prosecution | Diligent prosecution required
LCivR 83.2 | Pro Se | Address, phone, email required; notify of changes

II. FILING PACKAGE -- DOCUMENTS

A. Primary Filing Documents

| Document | Source File | Format | Status

--- | ----- | ----- | ----- | -----

- 1 | Section 1983 Complaint (8 Counts) | 01_COMPLAINT_1983.md | PDF | ☐
- 2 | IFP Application (28 USC § 1915) | IFP_APPLICATION_FINAL.md | PDF | ☐
- 3 | Civil Cover Sheet (JS-44) | Complete online form | PDF | ☐
- 4 | Summons (AO 440) × 5 defendants | Complete AO 440 form | PDF | ☐
- 5 | USM-285 Process Forms × 5 defendants | Complete USM-285 form | PDF | ☐

B. Supporting Documents for IFP

| Document | Status | Notes

--- | ----- | ----- | -----

- 1 | Most recent federal tax return (or declaration) | ☐ | Required
- 2 | Pay stubs -- last 3 months | ☐ | Or unemployment documentation
- 3 | Bank statements -- last 3 months, all accounts | ☐ | Checking and savings
- 4 | Public benefit award letters | ☐ | SSI, TANF, SNAP, Medicaid
- 5 | Child support order | ☐ | Showing current obligations
- 6 | Lease / mortgage statement | ☐ | Current housing costs
- 7 | Utility bills -- most recent | ☐ | Electric, gas, water

C. Reference Documents (Retain for Your Records)

| Document | Source File | Purpose

--- | ----- | ----- | -----

- 1 | Immunity Defense Matrix | 02_IMMUNITY_DEFENSE_MATRIX.md | Anticipated defense preparation
- 2 | Evidence Compilation | 04_EVIDENCE_COMPILATION.md | Evidence index and authentication
- 3 | Discovery Plan | 05_DISCOVERY_PLAN.md | Post-filing discovery strategy
- 4 | Service Plan | 06_SERVICE_PLAN.md | FRCP 4 service procedures
- 5 | Filing Instructions | 07_FILING_INSTRUCTIONS.md | Detailed CM/ECF procedures
- 6 | Filing Readiness Score | 08_FILING_READINESS_SCORE.md | Risk assessment and action items

III. FILING PROCEDURES

A. Paper Filing (Recommended for Initial Pro Se Filing)

Step | Action | Details

----- | ----- | -----

- 1 | Print all documents | Single-sided, 8.5" × 11", stapled or clipped
- 2 | Prepare originals + copies | Original for court + 1 copy for each defendant (5) + 1 copy for your records = 7 total sets
- 3 | Complete Civil Cover Sheet (JS-44) | See Section IV below
- 4 | Complete AO 440 Summons × 5 | One for each defendant
- 5 | Complete USM-285 × 5 | One for each defendant
- 6 | Sign all documents | Blue ink recommended for originals
- 7 | Include self-addressed stamped envelope | For file-stamped copies to be returned
- 8 | File in person or by mail | See addresses below

B. Filing Locations

Location | Address | Hours

----- | ----- | -----

Grand Rapids (Primary -- Southern Division) | Gerald R. Ford Federal Building, 110 Michigan Street NW, Grand Rapids, MI 49503 | M-F 8:30 AM - 4:30 PM

Kalamazoo (Alternate) | 410 W Michigan Ave, Kalamazoo, MI 49007 | M-F 8:30 AM - 4:30 PM

Mail Filing | Clerk of Court, USDC-WDMI, 399 Federal Building, 110 Michigan St NW, Grand Rapids, MI 49503 | N/A

C. Filing Day -- Step-by-Step

| Action | []

--- | ----- | ---

- 1 | Verify ALL placeholder fields are completed (addresses, dates, etc.) | []
- 2 | Verify ALL documents are signed | []
- 3 | Verify IFP Application has all financial data filled in | []
- 4 | Verify supporting financial documents are attached to IFP | []
- 5 | Print original + 6 copies of Complaint | []
- 6 | Print original + 1 copy of IFP Application (with attachments) | []
- 7 | Complete and print JS-44 Civil Cover Sheet | []
- 8 | Complete and print AO 440 Summons × 5 | []
- 9 | Complete and print USM-285 × 5 | []
- 10 | Include SASE for file-stamped copies | []
- 11 | Submit entire package to Clerk | []
- 12 | Request and retain receipt of filing | []

IV. JS-44 CIVIL COVER SHEET -- COMPLETION GUIDE

Field | Entry

----- | -----

Plaintiff | ANDREW J. PIGORS

County of Residence -- Plaintiff | Muskegon

Defendant | HON. JENNY L. McNEILL, et al.

County of Residence -- Defendant | Muskegon

Attorneys -- Plaintiff | PRO SE

Attorneys -- Defendant | [Leave blank -- to be completed by Defendants]

Basis of Jurisdiction | Box 3 -- Federal Question (U.S. Government Not a Party)
Citizenship of Principal Parties | N/A for federal question
Nature of Suit | 440 -- Other Civil Rights
Origin | 1 -- Original Proceeding
Cause of Action | 42 USC § 1983 -- Deprivation of civil rights under color of state law
Brief Description | Civil rights action challenging deprivation of parental rights through pattern of ex parte orders without due process
Jury Demand | Yes -- Plaintiff
Related Cases | ☐ Check if yes -- No related federal cases
Class Action | No

V. SUMMONS (AO 440) -- COMPLETION GUIDE

Complete one AO 440 form for each Defendant:

Defendant | Name on Summons | Service Address

----- | ----- | -----

1. McNeill | HON. JENNY L. McNEILL (Individual Capacity) | [Personal address or 990 Terrace St, Muskegon, MI 49442]
2. Watson | TIFFANY A. WATSON | [Last known residential address]
3. Barnes | PAMELA BARNES (P55406) (Individual Capacity) | [State Bar registered address]
4. County | MUSKEGON COUNTY (c/o County Clerk) | 990 Terrace Street, Muskegon, MI 49442
5. FOC | 14TH JUDICIAL CIRCUIT COURT, FOC (c/o FOC Director) | 990 Terrace Street, Muskegon, MI 49442

VI. POST-FILING TIMELINE

Event | Deadline | Rule | Action Required

----- | ----- | ----- | -----

Case Assignment | Same day or within days | -- | Note case number and assigned judge
IFP Ruling | 14-30 days (typical) | 28 USC § 1915 | If denied, pay \$405 by court's deadline
§ 1915(e)(2) Screening | With IFP ruling | 28 USC § 1915(e)(2) | Court screens for frivolousness
Service of Process | 90 days from filing | FRCP 4(m) | If IFP granted, U.S. Marshals serve
Defendant Response | 21 days from service (individuals) | FRCP 12(a)(1) | Calendar each defendant's deadline
Defendant Response | 60 days from service (gov't entities) | FRCP 12(a)(2) | Calendar separately
FRCP 26(f) Conference | Per scheduling order | FRCP 26(f) | Meet and confer with defendants
Initial Disclosures | 14 days after 26(f) | FRCP 26(a)(1) | Exchange initial disclosures
Scheduling Conference | Per court order | FRCP 16 | Appear as scheduled

VII. STATUTE OF LIMITATIONS VERIFICATION

All federal claims confirmed within SOL (3-year Michigan tort SOL borrowed for § 1983):

Count | Claim | SOL Expiration | Days Remaining | Status

----- | ----- | ----- | ----- | -----

I | Substantive Due Process | 2029-03-02 | 1,094 | [GREEN] GREEN
II | Procedural Due Process | 2029-03-02 | 1,094 | [GREEN] GREEN
III | Equal Protection | 2029-01-15 | 1,048 | [GREEN] GREEN
IV | § 1985 Conspiracy | 2029-02-27 | 1,091 | [GREEN] GREEN
V | § 1986 Failure to Prevent | 2029-02-27 | 1,091 | [GREEN] GREEN
VI | Monell Liability | 2029-03-02 | 1,094 | [GREEN] GREEN
VII | First Amendment Retaliation | 2029-02-27 | 1,091 | [GREEN] GREEN

Source: sol_audit_results table, litigation_context.db

VIII. KEY CONTACTS

Office | Contact | Phone | Address

----- | ----- | ----- | -----

Clerk of Court, WDMI | Clerk's Office | (616) 456-2381 | 110 Michigan St NW, Grand Rapids, MI 49503
U.S. Marshals, WDMI | Marshals Office | (616) 456-2438 | Gerald R. Ford Federal Building, Grand Rapids
PACER Service Center | Help Desk | (800) 676-6856 | <https://pacer.uscourts.gov>
WDMI Court Website | -- | -- | <https://www.miwd.uscourts.gov>
Pro Se Resources | -- | -- | <https://www.miwd.uscourts.gov/pro-se-information>
WDMI Local Rules | -- | -- | <https://www.miwd.uscourts.gov/local-rules>

IX. CRITICAL REMINDERS

[!] Before Filing

- [] Timing Decision: Confirm whether state proceedings have concluded (Younger abstention risk if pending)
- [] Complete ALL blanks in Complaint and IFP Application -- no placeholders
- [] Verify all dates against official court records
- [] Verify all defendant names are spelled correctly
- [] Verify defendant addresses are current
- [] Attach all IFP supporting documents (tax returns, bank statements, etc.)
- [] Consider attorney consultation -- even limited-scope review recommended

[!] After Filing

- [] Retain file-stamped copies of everything
- [] Note case number and judge immediately
- [] Calendar ALL deadlines -- missing a deadline can be fatal
- [] Monitor IFP ruling -- respond promptly if additional information requested

- [] Follow up with Marshals within 30 days to verify service progress
- [] Prepare for § 1915(e)(2) screening -- complaint designed to survive
- [] Prepare for Motion to Dismiss -- review immunity matrix
(02_IMMUNITY_DEFENSE_MATRIX.md)

Filing Checklist Finalized: 2026-03-04

Case: Pigors v. McNeill et al. -- WDMI Section 1983